ENGLISH FOR INTERNATIONAL LEGAL PRACTICE

International Law English

Identify the jurisdiction. Preserve the distinction.



Phil Stilwell

© 2026 Phil Stilwell. All rights reserved.

No part of this publication may be reproduced, stored in a retrieval system, or transmitted in any form or by any means without prior written permission from the author, except as permitted by law.

Eight lessons. Eleven extended conversations.

INSIDE THE BOOK

192 vocabulary entries / 128 reusable phrases
220 extended-dialogue turns / 11 transfer exchanges
Word banks and explained answer keys

Upper-intermediate to advanced (B2-C1). For lawyers, international legal advisers, and legal professionals coordinating matters across jurisdictions.

2026 edition

Eight scenarios. Eight skills.

Eight matters distinguish the client and mandate, governing law and forum, service and receipt, arbitral seat and hearing venue, awards and enforcement, treaty text and applicability, access and lawful production, and proposals and binding settlements.

01 Defining the client and the cross-border mandate 4

The parent is not the signatory | Clarify legal entities, instructions, and jurisdictional scope before summarizing a cross-border matter.

02 Separating governing law from the dispute forum 13

The clause answers two different questions | Explain contract provisions without collapsing substantive law, court jurisdiction, and hearing location.

03 Coordinating service abroad and deadline questions 22

Delivered is not necessarily served | Distinguish physical receipt, a service method, and verified legal effect in a cross-border procedural update.

04 Explaining an arbitral seat and hearing arrangements 31

A remote hearing does not answer the seat question | Distinguish the legal seat, hearing venue, procedural rules, and language in an arbitration planning discussion.

05 Explaining recognition, enforcement, and recovery 40

An award is not money in the account | Distinguish a favorable arbitral award from recognition, enforcement proceedings, and actual collection.

06 Reading treaty text without overstating applicability 49

A signature does not answer every status question | Distinguish treaty wording, participation status, temporal scope, and interpretation in a concise legal briefing.

07 Coordinating cross-border document production 58

Access is not authority to export | Explain preservation, review, disclosure, and transfer as separate steps while coordinating conflicting legal requirements.

08 Negotiating settlement language across legal systems 67

A commercial proposal is not a signed settlement | Separate negotiating positions, authority, drafting status, and legal effect in a cross-border settlement update.

Communication field notes 3

Three more workplace conversations 76

Answers and explanations 85

Fast-access phrase pages 104

Vocabulary index 106

Sources and publication notes 114

International is a context, not a universal rulebook.

Cross-border work requires lawyers to explain which law, institution, entity, and procedure they mean. Clear English keeps a provisional view separate from local advice and preserves uncertainty when documents travel between languages and legal systems.

Name the legal person

A group name, brand, parent company, and contracting affiliate may not identify the same legal person. Clarify the client and relevant parties before discussing the substance.

"Which entity signed, and which entity is asking us to act?"

Separate the legal questions

Governing law, jurisdiction, venue, arbitral seat, and enforcement concern different questions. A convenient location does not answer all of them.

"That clause identifies substantive law; the forum clause needs separate review."

Keep local advice attributable

A coordinating lawyer should identify which jurisdictional issue requires local counsel, what information the opinion assumes, and what remains open.

"Local counsel has confirmed that point for the stated facts, not for every affiliate."

Make the status explicit

Received, served, filed, recognized, enforced, proposed, and agreed are not interchangeable. Shortened progress reports can create false legal certainty.

"The application was filed; the court has not determined it."

PROFESSIONAL BOUNDARIES

All people, organizations, cases, figures, and documents in the exercises are fictional. This is professional English practice, not legal advice, a filing guide, or authority to practice law. Legal meanings, deadlines, privilege, service, privacy, sanctions, and enforceability depend on the actual jurisdiction, instrument, facts, and current law. Use qualified counsel and verified current primary materials for real matters. No exercise establishes a filing deadline, service method, court jurisdiction, treaty obligation, or binding settlement. Protect real client information.

The parent is not the signatory

A Read the situation

Clarify legal entities, instructions, and jurisdictional scope before summarizing a cross-border matter.

Orion Group contacts coordinating lawyer Leila about a supply dispute. The contract names Orion Components Ltd as signatory, while the email comes from the parent company, Orion Holdings. Contact Theo has not yet confirmed which entity will be the client or who can authorize the engagement. Documents mention operations in two jurisdictions. No representation, conflict clearance, or merits opinion has been established.

PEOPLE / Theo: Group legal contact | Leila: Coordinating lawyer

A FAMILIAR GROUP NAME IS NOT ENOUGH

Corporate shorthand can conceal important distinctions. Clarify the legal entity and authority without implying that the contact has acted improperly.

Briefing checks

Circle one answer in each item. Use the briefing.

1. Which entity is named in the contract?

A Orion Holdings
B Orion Group as an identified legal person
C Leila's firm
D Orion Components Ltd

2. Which point remains unresolved?

A The client entity and engagement authority
B The existence of a supply dispute
C The parent's email involvement
D The subsidiary's contract name

3. What would overstate the present status?

A Theo is the contact
B A contract has been supplied
C Our firm has accepted representation
D Two jurisdictions are mentioned

Answers and explanations: page 85.

The vocabulary that does the work

B Find the words / 1 of 2

Read the definitions and say the common word combinations aloud.

legal entity

Organization or person recognized as having a distinct legal identity.

IN USE identify the legal entity

parent company

Company controlling another company under the relevant relationship.

IN USE distinguish the parent company

subsidiary

Company controlled by another company.

IN USE identify the contracting subsidiary

affiliate

Entity connected through the relevant ownership or control relationship.

IN USE clarify the affiliate relationship

contracting party

Person or entity that is a party to the contract.

IN USE identify the contracting party

signatory

Person or entity identified as signing a document in the relevant capacity.

IN USE verify the signatory

client identity

Identification of the person or entity for whom counsel acts.

IN USE confirm client identity

engagement letter

Document defining the agreed professional engagement.

IN USE settle the engagement letter

scope of engagement

Boundaries of the work counsel is engaged to perform.

IN USE define the scope of engagement

conflicts check

Review for relevant conflicts before or during representation.

IN USE complete a conflicts check

authority to instruct

Power to give instructions for the relevant client or matter.

IN USE verify authority to instruct

local counsel

Lawyer advising on the relevant local jurisdiction.

IN USE instruct local counsel

Precision check

The parent's email does not establish that the parent signed the contract or is the client. Cross-border facts also do not automatically make the dispute one between states.

The vocabulary that does the work

B Find the words / 2 of 2

Read the definitions and say the common word combinations aloud.

coordinating counsel

Lawyer organizing advice or work across the matter.

IN USE identify coordinating counsel

jurisdictional nexus

Connection linking a matter to a particular legal jurisdiction.

IN USE identify a jurisdictional nexus

private international law

Rules addressing cross-border private-law questions, including applicable law and jurisdiction.

IN USE distinguish private international law

public international law

Law concerning states and other subjects of the international legal order.

IN USE distinguish public international law

corporate capacity

Legal ability of an entity to act in the relevant context.

IN USE verify corporate capacity

instruction record

Traceable account of instructions received and their source.

IN USE maintain an instruction record

clarification request

Question that resolves an unclear meaning or instruction.

IN USE make a targeted clarification request

source attribution

Identification of where information came from.

IN USE preserve source attribution

working assumption

Provisional premise used while information is incomplete.

IN USE challenge a working assumption

scope boundary

Limit of the work or authority being discussed.

IN USE state the scope boundary

action owner

Named person responsible for a specified next step.

IN USE confirm the action owner

check-back

Restatement used to verify that a message was understood.

IN USE complete a check-back

Precision check

Clarifying intake information is not accepting representation or giving a merits opinion. Actual engagement, conflict, and local-practice requirements must be satisfied.

Phrases you can actually use

C Notice the language / 1 of 2

IDENTIFY THE PARTY

"Which legal entity signed this agreement?"

CLARIFY THE CLIENT

"Is the proposed client the parent or the contracting subsidiary?"

CHECK AUTHORITY

"Who is authorized to give instructions for that entity?"

LIMIT THE MANDATE

"We need to define which jurisdictions and questions the engagement covers."

COORDINATE ADVICE

"That local-law point needs the appropriate local counsel."

AVOID PREMATURE ACCEPTANCE

"We have not yet confirmed the engagement or completed the required checks."

SEPARATE LEGAL FIELDS

"A private cross-border contract dispute is not automatically a dispute between states."

SUMMARIZE INTAKE

"The signatory is identified; client identity and authority remain to be confirmed."

Act for versus coordinate with

Act for identifies representation; coordinate with can describe communication without creating that relationship.

Group versus entity

Group is often commercial shorthand and may not identify the exact legal person involved.

Subject to

Subject to preserves an unresolved condition such as conflict clearance; omitting it may overstate acceptance.

Phrases you can actually use

C Notice the language / 2 of 2

CLARIFY THE QUESTION

"Are you asking about the finding or the next step?"

INVITE CORRECTION

"Please correct me if I have misunderstood that detail."

ATTRIBUTE INFORMATION

"That is what the current record says; it has not been independently confirmed."

SEPARATE POSSIBILITY

"That is a possibility, not an agreed outcome."

CHECK SCOPE

"That decision sits outside my authority."

PIN DOWN RESPONSIBILITY

"Who is responsible for that specific next step?"

REPAIR MISUNDERSTANDING

"Let me restate the distinction more clearly."

CLOSE AN EXCHANGE

"We agree on the action, the owner, and the point for review."

Reported versus verified

Reported attributes information to a source; verified indicates it has been checked. Do not use the words interchangeably.

Could versus will

Could introduces a possibility. Will commits to an action or predicts an outcome; check whether that certainty is justified.

By versus at

By gives a latest time; at identifies a scheduled moment. State the time zone when people work across locations.

Choose the precise message

D Check your understanding

Circle one best answer for each item. Use the stated purpose and case facts, not the option that merely sounds most polite.

1. Which intake question resolves the key distinction?

A Can the group brand replace every entity name?
B Shall we assume the parent is liable?
C Have we already won in both jurisdictions?
D Which entity is asking us to act, and which signed?

2. Which summary is supported?

A Every affiliate is already our client
B The matter is necessarily a state dispute
C The subsidiary signed; the proposed client remains unconfirmed
D The parent signed and retained us

3. What should be attributed to local counsel?

A A universal rule for all countries
B Automatic authority to act for all affiliates
C Advice on the specified local-law question
D Every commercial preference of the group

4. Which phrase preserves an unresolved condition?

A Subject to completion of the required checks
B Unconditionally accepted
C Representation is already confirmed
D No further authority is needed

Answers and explanations: page 85.

The parent is not the signatory

E Conversations / turns 1-10

Complete the numbered gaps. Use each bank entry once, without changing its form. Cover the answers at the end until you finish.

WORD + PHRASE BANK

scope of engagement / conflicts check / authority to instruct / client identity / Private international law / coordinating counsel / contracting party / instruction record / engagement letter / legal entity

01 **Theo:** Orion Group would like your firm to handle the supply dispute. The contract and the parent's email are attached.

02 **Leila:** Before discussing the merits, which [1] _____ is asking us to act, and which entity signed the contract?

03 **Theo:** The contract names Orion Components Ltd, but I work with Orion Holdings and used the parent company's email.

04 **Leila:** Then the [2] _____ and the email sender are different. We should keep that distinction in the intake record.

05 **Theo:** I assumed that using the group name would cover the parent and every affiliate without more detail.

06 **Leila:** We need to confirm [3] _____ rather than assume that every connected company would be represented under one engagement.

07 **Theo:** I can ask who will authorize the work. My role is to gather the documents, not necessarily to retain counsel.

08 **Leila:** That clarifies [4] _____. Please identify the authorized person without treating your coordination role as broader permission.

09 **Theo:** The documents mention operations in two jurisdictions. Does that mean you will advise on every local issue directly?

10 **Leila:** Not necessarily. The [5] _____ should identify the questions we handle and where appropriately qualified local advice is needed.

The conversation, continued

E Conversations / turns 11-20

Continue with the word bank on page 10.

11 **Theo:** We would value one person coordinating the advice so that separate answers do not contradict each other without explanation.

12 **Leila:** We can discuss a [6] _____ role while keeping each local opinion attributable to the relevant lawyer and stated assumptions.

13 **Theo:** Should I tell management that your firm has accepted the matter now that we have sent the documents?

14 **Leila:** Not yet. We need the actual engagement process and a [7] _____, along with the other required information, before confirming representation.

15 **Theo:** I will describe this as an intake discussion, not an accepted engagement or a favorable view on the claim.

16 **Leila:** Good. The [8] _____ should eventually reflect the confirmed client and scope rather than leaving those points implied.

17 **Theo:** One executive called this public international law because the companies operate in different countries. Is that a useful description?

18 **Leila:** Not automatically. [9] _____ questions can arise in a private contract dispute; the international element alone does not make it a state dispute.

19 **Theo:** I will return with the exact entity details, the authorized contact, and the questions we need answered in each jurisdiction.

20 **Leila:** That will give us an accurate [10] _____ and a sound basis for deciding the engagement, without assuming liability or offering a merits opinion prematurely.

ANSWERS / EXPLANATIONS: PAGE 86

1. legal entity | 2. contracting party | 3. client identity | 4. authority to instruct | 5. scope of engagement | 6. coordinating counsel | 7. conflicts check | 8. engagement letter | 9. Private international law | 10. instruction record

A new affiliate joins the email chain

F Say it

After intake, another affiliate joins the email chain and asks for advice. The engagement for that affiliate has not been confirmed, and no conflicts outcome is supplied.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

affiliate / instruct / outstanding / confirmed

Contact: "A different [1] _____ has joined the discussion."

Lawyer: "Its representation is not yet [2] _____."

Contact: "We need to identify its authority to [3] _____."

Lawyer: "The required checks remain [4] _____."

ANSWERS / EXPLANATIONS: PAGE 86

1. affiliate | 2. confirmed | 3. instruct | 4. outstanding

Rehearse with a fixed script

1. Read the corrected intake and distinguish the group, parent, subsidiary, signatory, and proposed client.

2. Swap roles and give the final intake summary without claiming that representation has been accepted.

3. Complete the four-line follow-up with the supplied choices. Check the explanations, then read the corrected exchange twice, changing roles.

WORKING ALONE

Read both roles, pausing for two seconds when the speaker changes. Repeat with the bank covered, then check any missed expressions.

The clause answers two different questions

A Read the situation

Explain contract provisions without collapsing substantive law, court jurisdiction, and hearing location.

A fictional supply contract says its substantive law is the law of Jurisdiction A and names courts in Jurisdiction B in a separate dispute clause. Counsel Mina and commercial manager Owen review the wording. Whether the clauses are effective, exclusive, or subject to mandatory rules has not been assessed. Owen assumes the named courts necessarily apply only their own substantive law.

PEOPLE / Owen: Commercial manager | Mina: Counsel

SEPARATE BEFORE SIMPLIFYING

A short explanation can remain accurate if it identifies the distinct question each clause addresses. Avoid replacing several legal concepts with the convenient word location.

Briefing checks

Circle one answer in each item. Use the briefing.

1. Which substantive law does the fictional wording select?

A No identified law
B Law of Jurisdiction A
C Law of Jurisdiction B automatically
D Any law chosen later by a witness

2. Which courts does the separate clause name?

A Courts in Jurisdiction B
B Courts in Jurisdiction A only
C Every court worldwide
D No court

3. What remains unassessed?

A The wording's two named jurisdictions
B Owen's assumption
C The existence of separate clauses
D Effectiveness and scope of the clauses

Answers and explanations: page 87.

The vocabulary that does the work

B Find the words / 1 of 2

Read the definitions and say the common word combinations aloud.

governing law

Law identified as governing a legal relationship or question.

IN USE identify the governing law

substantive law

Law determining rights and obligations rather than only procedure.

IN USE distinguish substantive law

procedural law

Rules governing the conduct of legal proceedings.

IN USE distinguish procedural law

choice-of-law clause

Contract wording selecting law for specified matters.

IN USE review a choice-of-law clause

forum-selection clause

Wording identifying a forum for disputes.

IN USE interpret a forum-selection clause

jurisdiction

Legal authority of a court or tribunal over the relevant matter or parties.

IN USE assess jurisdiction

venue

Place where proceedings are conducted under the relevant framework.

IN USE distinguish venue

exclusive jurisdiction clause

Clause purporting to designate a forum to the exclusion of alternatives.

IN USE assess an exclusive jurisdiction clause

non-exclusive jurisdiction clause

Clause identifying a forum without necessarily excluding others.

IN USE interpret a non-exclusive jurisdiction clause

mandatory rule

Rule that may apply despite party agreement under the relevant legal framework.

IN USE identify a mandatory rule

conflict-of-laws analysis

Assessment of which law or forum rules apply to a cross-border issue.

IN USE undertake conflict-of-laws analysis

forum non conveniens

Doctrine allowing a court in applicable systems to decline a forum on specified grounds.

IN USE assess forum non conveniens locally

Precision check

Selecting a court and selecting substantive law address different questions. The fictional wording can be described without concluding that either clause is effective or universally enforceable.

The vocabulary that does the work

B Find the words / 2 of 2

Read the definitions and say the common word combinations aloud.

choice of court

Selection of a court or courts for a dispute.

IN USE clarify choice of court

dispute-resolution clause

Contract provision addressing how disputes are to be handled.

IN USE review the dispute-resolution clause

severability

Treatment of whether one invalid provision affects others under the applicable framework.

IN USE consider severability under the actual law

enforceability opinion

Legal assessment of whether specified rights or provisions can be enforced.

IN USE qualify an enforceability opinion

contract interpretation

Determination of contractual meaning under the relevant law and context.

IN USE explain contract interpretation

local-law qualification

Limitation or condition arising from the relevant local-law analysis.

IN USE preserve a local-law qualification

clarification request

Question that resolves an unclear meaning or instruction.

IN USE make a targeted clarification request

source attribution

Identification of where information came from.

IN USE preserve source attribution

working assumption

Provisional premise used while information is incomplete.

IN USE challenge a working assumption

scope boundary

Limit of the work or authority being discussed.

IN USE state the scope boundary

action owner

Named person responsible for a specified next step.

IN USE confirm the action owner

check-back

Restatement used to verify that a message was understood.

IN USE complete a check-back

Precision check

Do not infer exclusivity, a procedural deadline, or the effect of mandatory rules from this exercise. Those issues need the actual clause, facts, and qualified jurisdiction-specific review.

Phrases you can actually use

C Notice the language / 1 of 2

SEPARATE THE CLAUSES

"This provision selects law; that provision identifies a forum."

STATE THE WORDING

"The contract names A for substantive law and B for courts."

AVOID AUTOMATIC INFERENCE

"The court's location does not by itself settle every applicable-law question."

CLARIFY SCOPE

"Which disputes and parties does the clause actually cover?"

PRESERVE REVIEW

"We have described the wording, not yet given an enforceability opinion."

CHECK EXCLUSIVITY

"We should not assume exclusive unless the actual wording and law support it."

FLAG QUALIFICATION

"That conclusion remains subject to the relevant local-law analysis."

SUMMARIZE PLAINLY

"Where a dispute is heard and which substantive law applies are distinct questions."

Names versus establishes

A clause names a forum; whether jurisdiction is legally established requires the relevant analysis.

Applies to

Applies to should identify the issue or category governed, not imply that one clause answers every procedural question.

Subject to review

This preserves the difference between reading the contract and completing the legal opinion.

Phrases you can actually use

C Notice the language / 2 of 2

CLARIFY THE QUESTION

"Are you asking about the finding or the next step?"

INVITE CORRECTION

"Please correct me if I have misunderstood that detail."

ATTRIBUTE INFORMATION

"That is what the current record says; it has not been independently confirmed."

SEPARATE POSSIBILITY

"That is a possibility, not an agreed outcome."

CHECK SCOPE

"That decision sits outside my authority."

PIN DOWN RESPONSIBILITY

"Who is responsible for that specific next step?"

REPAIR MISUNDERSTANDING

"Let me restate the distinction more clearly."

CLOSE AN EXCHANGE

"We agree on the action, the owner, and the point for review."

Reported versus verified

Reported attributes information to a source; verified indicates it has been checked. Do not use the words interchangeably.

Could versus will

Could introduces a possibility. Will commits to an action or predicts an outcome; check whether that certainty is justified.

By versus at

By gives a latest time; at identifies a scheduled moment. State the time zone when people work across locations.

Choose the precise message

D Check your understanding

Circle one best answer for each item. Use the stated purpose and case facts, not the option that merely sounds most polite.

1. Which summary accurately separates the clauses?

A The clauses have no possible separate functions
B A is named for substantive law; B is named for courts
C B automatically replaces A in every respect
D A's courts are necessarily the only forum

2. Which question remains open?

A Whether B is mentioned
B Whether Owen asked for clarification
C Whether the forum clause is effective and exclusive
D Whether the text names A

3. What does a local-law qualification do?

A Removes the need for local advice
B Guarantees enforcement everywhere
C Replaces the contract wording
D Limits the conclusion to the actual analysis and conditions

4. Which phrase most clearly avoids an overstatement?

A Every jurisdiction must enforce it
B The choice eliminates all mandatory rules
C The clause names these courts; its effect needs review
D These courts are unquestionably exclusive

Answers and explanations: page 87.

The clause answers two different questions

E Conversations / turns 1-10

Complete the numbered gaps. Use each bank entry once, without changing its form. Cover the answers at the end until you finish.

WORD + PHRASE BANK

substantive law / enforceability opinion / mandatory rule / forum-selection clause / Venue / Jurisdiction / choice-of-law clause / local-law qualification / procedural law / contract interpretation

01 **Owen:** The contract names courts in B, so I assumed the law of B governs every question under the agreement.

02 **Mina:** Let us separate the [1] _____ from the provision about courts before drawing that conclusion from the location alone.

03 **Owen:** The first provision says the agreement uses the substantive law of A. The next one names courts in B.

04 **Mina:** Then [2] _____ and the named forum are identified separately in this wording. That is the distinction we need to preserve.

05 **Owen:** Does a court's location tell us nothing useful, or does it answer a different part of the legal question?

06 **Mina:** It matters, but [3] _____ and other forum issues need their own analysis. One label should not stand in for every issue.

07 **Owen:** I also called the courts exclusive in my summary, although I did not check whether the clause used that word.

08 **Mina:** We should review the [4] _____ before describing its scope or exclusivity. Your summary currently adds a conclusion we have not assessed.

09 **Owen:** Could a rule still matter even if the parties chose a different law in their agreement?

10 **Mina:** A [5] _____ can require separate attention under the relevant framework. We need local analysis rather than a universal answer from this clause alone.

The conversation, continued

E Conversations / turns 11-20

Continue with the word bank on page 19.

11 **Owen:** Then choosing a court is not quite the same as confirming that the court has authority over every possible dispute.

12 **Mina:** Correct. [6] _____ needs to be assessed for the actual parties and issue, not assumed from an abbreviated contract summary.

13 **Owen:** I used venue as another word for governing law in the internal slide. That now seems likely to confuse people.

14 **Mina:** [7] _____ concerns the place of proceedings in the relevant framework. It is not a substitute term for substantive law.

15 **Owen:** Could I tell management we have read the wording but have not completed the legal opinion about its effect?

16 **Mina:** Yes. An [8] _____ is more than identifying the two jurisdictions named in the document.

17 **Owen:** We should also carry any assumptions from local counsel into the summary instead of removing them to make the slide shorter.

18 **Mina:** Exactly. A [9] _____ may be essential to the meaning of the advice, not optional wording around the main answer.

19 **Owen:** My corrected explanation is that A is named for substantive law, B for courts, and scope and effect remain under review.

20 **Mina:** That preserves the [10] _____ questions without promising a result or treating one location as the answer to everything.

ANSWERS / EXPLANATIONS: PAGE 88

1. choice-of-law clause | 2. substantive law | 3. procedural law | 4. forum-selection clause | 5. mandatory rule | 6. Jurisdiction | 7. Venue | 8. enforceability opinion | 9. local-law qualification | 10. contract interpretation

Exclusive was added in the summary

F Say it

The original clause names a forum, but its exclusivity has not been assessed. An internal summary calls the forum exclusive. Counsel requests correction pending review.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

characterization / forum / review / exclusive

Counsel: "The clause names a [1] _____."

Manager: "My summary added the word [2] _____."

Counsel: "That conclusion remains under [3] _____."

Manager: "I will correct the unsupported [4] _____."

ANSWERS / EXPLANATIONS: PAGE 88

1. forum | 2. exclusive | 3. review | 4. characterization

Rehearse with a fixed script

1. Read the corrected exchange and separate substantive law, procedure, jurisdiction, and venue.

2. Swap roles and summarize the two fictional clauses while keeping effectiveness and exclusivity unresolved.

3. Complete the four-line follow-up with the supplied choices. Check the explanations, then read the corrected exchange twice, changing roles.

WORKING ALONE

Read both roles, pausing for two seconds when the speaker changes. Repeat with the bank covered, then check any missed expressions.

Delivered is not necessarily served

A Read the situation

Distinguish physical receipt, a service method, and verified legal effect in a cross-border procedural update.

Coordinator Ben sends counsel Asha a courier receipt showing delivery of documents to an overseas company's office. No assessment of valid service, applicable treaty channels, translation requirements, recipient authority, or response deadline has been completed. Ben has described the defendant as served. Asha requests jurisdiction-specific verification and keeps any actual urgent deadline issue with qualified counsel.

PEOPLE / Ben: Matter coordinator | Asha: Counsel

OPERATIONAL PROOF AND LEGAL EFFECT DIFFER

A courier can confirm a delivery event without answering whether service was valid under the applicable law. Report each state precisely and escalate real time limits promptly.

Briefing checks

Circle one answer in each item. Use the briefing.

1. What does the supplied receipt confirm?

A A courier delivery event
B Valid service under every applicable rule
C An established response deadline
D The recipient's legal authority

2. Which summary currently overstates the facts?

A A receipt exists
B Counsel needs to review the route
C The defendant has been served
D Documents reached an office

3. What must be verified before giving a deadline answer?

A A guessed standard period
B The courier's advertising promise
C The coordinator's preferred date
D The applicable rules and actual triggering facts

Answers and explanations: page 89.

The vocabulary that does the work

B Find the words / 1 of 2

Read the definitions and say the common word combinations aloud.

service of process

Formal delivery or notification of legal documents under the applicable rules.

IN USE verify service of process

transmission channel

Route used to send documents under the relevant procedure.

IN USE identify a transmission channel

Central Authority

Designated authority with functions under the relevant convention.

IN USE verify the designated Central Authority

Convention Contracting Party

State or other eligible party bound in the relevant convention context.

IN USE check Convention Contracting Party status

service request

Request seeking service through the relevant procedure.

IN USE prepare a service request

certificate of service

Document recording service-related facts under the applicable process.

IN USE review a certificate of service

courier receipt

Record of delivery by a courier.

IN USE distinguish a courier receipt

authorized recipient

Person permitted to receive documents in the relevant legal capacity.

IN USE verify the authorized recipient

translation requirement

Rule requiring documents in a specified language or form.

IN USE confirm a translation requirement

certified translation

Translation accompanied by the certification required in the relevant context.

IN USE obtain the required certified translation

declaration or objection

State position affecting operation of a convention provision under the relevant framework.

IN USE check current declarations or objections

country profile

Official country-specific procedural information.

IN USE consult the current country profile

Precision check

Delivery, transmission, and valid service are different claims. The receipt cannot establish a universal deadline or show that treaty and local requirements were met.

The vocabulary that does the work

B Find the words / 2 of 2

Read the definitions and say the common word combinations aloud.

response deadline

Latest time for a required response under the actual rules.

IN USE verify the response deadline

triggering event

Event that starts a legal period or obligation under the relevant rule.

IN USE establish the triggering event

procedural calendar

Record of verified procedural dates and obligations.

IN USE maintain the procedural calendar

proof of transmission

Evidence that documents were sent through a stated route.

IN USE retain proof of transmission

defective service

Service that fails to satisfy applicable requirements.

IN USE assess alleged defective service

local procedural advice

Jurisdiction-specific advice on process and formalities.

IN USE obtain local procedural advice

clarification request

Question that resolves an unclear meaning or instruction.

IN USE make a targeted clarification request

source attribution

Identification of where information came from.

IN USE preserve source attribution

working assumption

Provisional premise used while information is incomplete.

IN USE challenge a working assumption

scope boundary

Limit of the work or authority being discussed.

IN USE state the scope boundary

action owner

Named person responsible for a specified next step.

IN USE confirm the action owner

check-back

Restatement used to verify that a message was understood.

IN USE complete a check-back

Precision check

Do not treat the lack of a verified deadline as permission to wait. Real procedural risk must be addressed promptly by qualified counsel using the actual facts and rules.

Phrases you can actually use

C Notice the language / 1 of 2

REPORT THE EVENT

"The courier confirms delivery to the office."

AVOID THE LEGAL LEAP

"That receipt alone does not establish valid service."

CHECK THE ROUTE

"Which transmission channel is applicable to these documents and countries?"

VERIFY THE RECIPIENT

"We need to confirm who received them and in what capacity."

CHECK CURRENT REQUIREMENTS

"Let us verify the relevant country information and translation requirements."

PRESERVE TIMING UNCERTAINTY

"The triggering event and response period still need legal verification."

ESCALATE PROMPTLY

"The deadline question needs immediate attention from the responsible counsel."

CORRECT THE STATUS

"I will replace served with the narrower delivery status until the legal review is complete."

Delivered versus served

Delivered reports physical receipt; served asserts a procedural status under applicable legal requirements.

From versus by

From can identify the start of a period; by identifies a latest time. Neither supplies the governing legal rule.

Confirmed by whom

The source matters: a courier confirms delivery, while legal effect requires the appropriate assessment.

Phrases you can actually use

C Notice the language / 2 of 2

CLARIFY THE QUESTION

"Are you asking about the finding or the next step?"

INVITE CORRECTION

"Please correct me if I have misunderstood that detail."

ATTRIBUTE INFORMATION

"That is what the current record says; it has not been independently confirmed."

SEPARATE POSSIBILITY

"That is a possibility, not an agreed outcome."

CHECK SCOPE

"That decision sits outside my authority."

PIN DOWN RESPONSIBILITY

"Who is responsible for that specific next step?"

REPAIR MISUNDERSTANDING

"Let me restate the distinction more clearly."

CLOSE AN EXCHANGE

"We agree on the action, the owner, and the point for review."

Reported versus verified

Reported attributes information to a source; verified indicates it has been checked. Do not use the words interchangeably.

Could versus will

Could introduces a possibility. Will commits to an action or predicts an outcome; check whether that certainty is justified.

By versus at

By gives a latest time; at identifies a scheduled moment. State the time zone when people work across locations.

Choose the precise message

D Check your understanding

Circle one best answer for each item. Use the stated purpose and case facts, not the option that merely sounds most polite.

1. Which update preserves the receipt's evidential scope?

A Courier delivery confirmed; service validity under review
B Valid service and deadline confirmed
C Every treaty requirement satisfied
D The company admitted the claim

2. What should the coordinator not calculate by guesswork?

A The number of attached documents
B The courier reference as printed
C The date shown on the receipt
D The legal response deadline

3. Which source is appropriate for country-specific requirements?

A Current official information and qualified local procedural advice
B A forum anecdote about another country
C The courier's general delivery policy alone
D An old unrelated contract template

4. Which action addresses real timing risk?

A Tell the client no deadline can exist
B Escalate promptly to responsible counsel while facts are checked
C Wait indefinitely because validity is uncertain
D Assume the longest period found online

Answers and explanations: page 89.

Delivered is not necessarily served

E Conversations / turns 1-10

Complete the numbered gaps. Use each bank entry once, without changing its form. Cover the answers at the end until you finish.

WORD + PHRASE BANK

triggering event / courier receipt / procedural calendar / translation requirement / Central Authority / certificate of service / transmission channel / local procedural advice / authorized recipient / response deadline

01 **Ben:** The courier receipt shows delivery to the overseas office, so I marked the defendant as served in our status report.

02 **Asha:** Please separate the [1] _____ from the legal conclusion. We have not yet verified whether that delivery constitutes valid service.

03 **Ben:** I thought the signature on the receipt answered the question, but it only identifies someone who accepted the package.

04 **Asha:** We need to verify the [2] _____ and the applicable procedure, rather than assume that any office signature has the same legal effect.

05 **Ben:** The matter crosses two countries. Should I simply choose the route the courier normally uses for international deliveries?

06 **Asha:** No. The [3] _____ needs to be checked against the actual legal framework, documents, countries, and relevant requirements.

07 **Ben:** The team mentioned a Hague Convention route but did not identify the countries' current positions or the authority involved.

08 **Asha:** Then verify the relevant [4] _____ where that channel applies, together with the current official country information and qualified advice.

09 **Ben:** I can gather the exact documents and the delivery record without claiming that the formal process is complete.

10 **Asha:** Please also check any [5] _____ through the proper review. Sending an English copy does not settle that question by itself.

The conversation, continued

E Conversations / turns 11-20

Continue with the word bank on page 28.

11 **Ben:** Management is asking when the company must respond. I was about to use the standard period from another matter.

12 **Asha:** Do not guess the [6] _____. This needs prompt attention from the responsible counsel using the actual rules and facts.

13 **Ben:** We also need to know which event starts any relevant period, rather than assuming the courier timestamp controls.

14 **Asha:** Exactly. The [7] _____ must be established under the applicable process. Uncertainty is not permission to leave the question unattended.

15 **Ben:** Would an official document confirming service answer a different question from our delivery receipt?

16 **Asha:** A [8] _____ has to be reviewed in its actual procedural context; we should not treat different documents as interchangeable proof.

17 **Ben:** I will correct the status to delivery confirmed, with legal service validity and timing still being checked.

18 **Asha:** Good. Keep the [9] _____ accurate, and make the outstanding deadline question visible to the lawyer responsible for it.

19 **Ben:** I will send the facts and unanswered questions today, with no invented deadline or claim that the defendant admitted anything.

20 **Asha:** That gives [10] _____ a reliable starting point and prevents an operational update from becoming an unsupported legal conclusion.

ANSWERS / EXPLANATIONS: PAGE 90

1. courier receipt | 2. authorized recipient | 3. transmission channel | 4. Central Authority | 5. translation requirement | 6. response deadline | 7. triggering event | 8. certificate of service | 9. procedural calendar | 10. local procedural advice

Sent is not yet received

F Say it

A service request is dispatched through a route selected after legal review. Receipt by the relevant authority has not been confirmed. No service certificate or response deadline is supplied.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

unconfirmed / dispatched / status / available

Coordinator: "The request has been [1] _____."

Counsel: "Authority receipt remains [2] _____."

Coordinator: "No service certificate is [3] _____."

Counsel: "We must preserve the actual procedural [4] _____."

ANSWERS / EXPLANATIONS: PAGE 90

1. dispatched | 2. unconfirmed | 3. available | 4. status

Rehearse with a fixed script

1. Read the corrected update and distinguish sent, delivered, received, and validly served.

2. Swap roles and route the deadline question promptly without calculating an unsupplied legal period.

3. Complete the four-line follow-up with the supplied choices. Check the explanations, then read the corrected exchange twice, changing roles.

WORKING ALONE

Read both roles, pausing for two seconds when the speaker changes. Repeat with the bank covered, then check any missed expressions.

A remote hearing does not answer the seat question

A Read the situation

Distinguish the legal seat, hearing venue, procedural rules, and language in an arbitration planning discussion.

A fictional arbitration clause identifies City A as the seat and a named institution's rules. The parties are considering a remote hearing with some participants joining from City B. Counsel Farah and client representative Emil review logistics. The language of proceedings and any change to the legal seat have not been agreed. No real institutional rule, legal deadline, or court power is determined by this exercise.

PEOPLE / Emil: Client representative | Farah: Arbitration counsel

LEGAL CHOICES AND TRAVEL CHOICES ARE SEPARATE

An efficient meeting plan should not silently change the legal basis of a proceeding. Use the same words consistently in schedules, emails, and instructions.

Briefing checks

Circle one answer in each item. Use the briefing.

1. Which seat does the fictional clause identify?

A Every participant's location
B No seat at all
C City A
D City B automatically

2. What is being considered for the hearing?

A An agreed change of seat to City B
B A completed award
C A final enforcement order
D Remote participation with some people in City B

3. Which issue remains unresolved?

A The possibility of remote participation
B The language of proceedings
C The clause's stated seat
D The existence of institutional rules

Answers and explanations: page 91.

The vocabulary that does the work

B Find the words / 1 of 2

Read the definitions and say the common word combinations aloud.

arbitration agreement

Agreement to resolve defined disputes through arbitration.

IN USE examine the arbitration agreement

arbitral seat

Legal place of arbitration with significance under the applicable framework.

IN USE identify the arbitral seat

hearing venue

Physical or arranged location for a hearing.

IN USE distinguish the hearing venue

arbitral tribunal

Arbitrator or panel deciding the dispute under the relevant authority.

IN USE address the arbitral tribunal

arbitral institution

Organization administering arbitration under its applicable framework.

IN USE identify the arbitral institution

institutional rules

Procedural rules associated with the administering institution.

IN USE verify the institutional rules

ad hoc arbitration

Arbitration not administered by an institution in the same way as institutional proceedings.

IN USE distinguish ad hoc arbitration

procedural order

Tribunal direction organizing aspects of the proceeding.

IN USE review a procedural order

terms of reference

Document defining aspects of an arbitration where required by the applicable process.

IN USE clarify the terms of reference

language of proceedings

Language or languages used under the agreed or determined procedure.

IN USE confirm the language of proceedings

remote hearing

Hearing with participants joining through remote communication technology.

IN USE organize a remote hearing

hearing protocol

Agreed or directed arrangements for conducting a hearing.

IN USE confirm the hearing protocol

Precision check

The legal seat and hearing arrangements are distinct. Remote participation from City B does not, on these facts, establish an agreed change to the stated seat in City A.

The vocabulary that does the work

B Find the words / 2 of 2

Read the definitions and say the common word combinations aloud.

tribunal constitution

Process of establishing the arbitral tribunal.

IN USE track tribunal constitution

arbitrator appointment

Selection or designation of an arbitrator under the relevant process.

IN USE confirm an arbitrator appointment

challenge to an arbitrator

Objection to an arbitrator under the applicable standards and process.

IN USE distinguish an arbitrator challenge

procedural timetable

Schedule governing steps in the proceeding.

IN USE maintain the procedural timetable

interim measure

Temporary relief or protection under the applicable authority.

IN USE discuss an interim measure

jurisdictional objection

Challenge to the authority of the tribunal or court to hear the matter.

IN USE preserve a jurisdictional objection

clarification request

Question that resolves an unclear meaning or instruction.

IN USE make a targeted clarification request

source attribution

Identification of where information came from.

IN USE preserve source attribution

working assumption

Provisional premise used while information is incomplete.

IN USE challenge a working assumption

scope boundary

Limit of the work or authority being discussed.

IN USE state the scope boundary

action owner

Named person responsible for a specified next step.

IN USE confirm the action owner

check-back

Restatement used to verify that a message was understood.

IN USE complete a check-back

Precision check

The actual agreement, applicable rules and law, tribunal directions, and party arrangements determine legal effect. Do not infer a real procedural power or deadline from this fictional planning conversation.

Phrases you can actually use

C Notice the language / 1 of 2

IDENTIFY THE LEGAL CHOICE

"The clause names City A as the seat."

SEPARATE LOGISTICS

"The hearing arrangement is a different question from the legal seat."

AVOID SILENT CHANGE

"We should not describe a seat change that nobody has agreed."

VERIFY THE RULES

"Which version of the applicable rules governs this matter?"

CLARIFY LANGUAGE

"The language of proceedings still needs confirmation."

PLAN PARTICIPATION

"The protocol should address who joins, from where, and under what arrangements."

PRESERVE AUTHORITY

"That request needs the appropriate tribunal or procedural decision."

SUMMARIZE STATUS

"The seat is stated; hearing logistics and language remain under discussion."

Seat versus venue

Seat is a legal concept; venue usually describes hearing location. Keep their roles distinct in this context.

Proposed versus directed

Proposed identifies a request; directed identifies a procedural instruction by the relevant authority.

From City B

A participant's connection location does not by itself establish a change of legal seat.

Phrases you can actually use

C Notice the language / 2 of 2

CLARIFY THE QUESTION

"Are you asking about the finding or the next step?"

INVITE CORRECTION

"Please correct me if I have misunderstood that detail."

ATTRIBUTE INFORMATION

"That is what the current record says; it has not been independently confirmed."

SEPARATE POSSIBILITY

"That is a possibility, not an agreed outcome."

CHECK SCOPE

"That decision sits outside my authority."

PIN DOWN RESPONSIBILITY

"Who is responsible for that specific next step?"

REPAIR MISUNDERSTANDING

"Let me restate the distinction more clearly."

CLOSE AN EXCHANGE

"We agree on the action, the owner, and the point for review."

Reported versus verified

Reported attributes information to a source; verified indicates it has been checked. Do not use the words interchangeably.

Could versus will

Could introduces a possibility. Will commits to an action or predicts an outcome; check whether that certainty is justified.

By versus at

By gives a latest time; at identifies a scheduled moment. State the time zone when people work across locations.

Choose the precise message

D Check your understanding

Circle one best answer for each item. Use the stated purpose and case facts, not the option that merely sounds most polite.

1. Which summary matches the case?

A No legal seat whenever a hearing is remote
B Every participant creates a new seat
C Seat A; remote logistics involving B under discussion
D Seat B automatically because a participant is there

2. Which question needs confirmation?

A The language and hearing protocol
B Whether any clause exists
C Whether A is named
D Whether some people may connect remotely

3. Which statement preserves the request's status?

A We propose this arrangement for the appropriate decision
B The tribunal has already directed it
C All objections are waived
D The seat change is final

4. What should be checked before relying on an institutional procedure?

A The applicable rule version and actual directions
B The institution's logo alone
C Another matter's old timetable
D A participant's travel preference

Answers and explanations: page 91.

A remote hearing does not answer the seat question

E Conversations / turns 1-10

Complete the numbered gaps. Use each bank entry once, without changing its form. Cover the answers at the end until you finish.

WORD + PHRASE BANK

hearing venue / procedural order / arbitral seat / arbitral tribunal / institutional rules / remote hearing / procedural timetable / hearing protocol / language of proceedings / arbitration agreement

01 **Emil:** Several participants will join from City B, so I changed the planning slide to say the arbitration is seated there.

02 **Farah:** Please restore the [1] _____ stated in the clause. City A remains the stated seat; our hearing discussion has not agreed a change.

03 **Emil:** I had treated seat and the location of the people speaking as two expressions for the same thing.

04 **Farah:** The [2] _____ and the legal seat answer different questions. Logistics should not silently rewrite the legal description of the proceeding.

05 **Emil:** If the hearing is remote, we still need a clear arrangement rather than saying there is no location or procedure at all.

06 **Farah:** Yes. A [3] _____ needs an appropriate protocol, while the actual agreement, rules, and directions continue to matter.

07 **Emil:** The contract names an institution, but the file contains rules from two different years. Which should the team cite?

08 **Farah:** We must verify the applicable [4] _____ rather than choose the newest or most convenient file without checking the governing framework.

09 **Emil:** I will flag that question. We also have not agreed which language will be used for submissions and the hearing.

10 **Farah:** Then the [5] _____ should remain an open item instead of being assumed from where participants connect.

The conversation, continued

E Conversations / turns 11-20

Continue with the word bank on page 37.

11 **Emil:** Can our scheduling email itself decide those points, or does it need to be treated as a proposal?

12 **Farah:** Treat it as a proposal for the appropriate process. A [6] _____ is different from an internal email suggesting an arrangement.

13 **Emil:** The technical team wants to know who is allowed in each remote room and how documents will be displayed.

14 **Farah:** Those belong in the [7] _____, subject to the actual decisions and safeguards required for this proceeding.

15 **Emil:** I will not tell them that a convenient technical setting resolves every legal issue about participation.

16 **Farah:** Correct. The [8] _____ and applicable framework determine the procedural questions within their proper scope.

17 **Emil:** We should keep a separate list of proposed dates and dates that have actually been fixed.

18 **Farah:** That will protect the [9] _____ from becoming a mixture of binding directions and unapproved planning preferences.

19 **Emil:** My revised slide will show seat A, proposed remote arrangements involving B, and language still to be confirmed.

20 **Farah:** That accurately describes the [10] _____ and the open planning issues without claiming that a logistical proposal has changed the legal seat.

ANSWERS / EXPLANATIONS: PAGE 92

1. arbitral seat | 2. hearing venue | 3. remote hearing | 4. institutional rules | 5. language of proceedings | 6. procedural order | 7. hearing protocol | 8. arbitral tribunal | 9. procedural timetable | 10. arbitration agreement

A draft timetable was circulated as final

F Say it

Counsel proposes a hearing date in a draft email. No tribunal direction or party agreement fixing the date is supplied. The internal calendar marks it confirmed.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

proposed / status / pending / confirmed

Counsel: "The date was only [1] _____."

Coordinator: "Our calendar incorrectly marked it [2] _____."

Counsel: "The actual procedural decision remains [3] _____."

Coordinator: "I will correct the timetable [4] _____."

ANSWERS / EXPLANATIONS: PAGE 92

1. proposed | 2. confirmed | 3. pending | 4. status

Rehearse with a fixed script

1. Read the corrected exchange and contrast seat, venue, remote participation, and language.

2. Swap roles and report the planning status without turning a proposal into a procedural order.

3. Complete the four-line follow-up with the supplied choices. Check the explanations, then read the corrected exchange twice, changing roles.

WORKING ALONE

Read both roles, pausing for two seconds when the speaker changes. Repeat with the bank covered, then check any missed expressions.

An award is not money in the account

A Read the situation

Distinguish a favorable arbitral award from recognition, enforcement proceedings, and actual collection.

A fictional company has received a favorable arbitral award. Client representative Marta asks counsel David to report the award amount as cash recovered. No voluntary payment, recognition order, enforcement step, verified asset location, or collection has occurred in the supplied case. Counsel discusses the questions requiring jurisdiction-specific review without predicting the result.

PEOPLE / Marta: Client representative | David: Counsel

A LEGAL SUCCESS AND A COMMERCIAL RESULT MAY BE DIFFERENT STAGES

Acknowledge the award while explaining what remains. Avoid making the client feel that an important result was meaningless simply because further work is required.

Briefing checks

Circle one answer in each item. Use the briefing.

1. What has actually occurred?

A A favorable arbitral award was received
B Cash was collected
C Every court recognized the award
D Assets were seized

2. Which financial report would overstate the facts?

A Further legal review is needed
B Payment has not yet occurred
C Cash recovered equals the award amount
D An award has been received

3. Which issue needs verification?

A Whether an award exists
B Whether Marta asked a question
C Whether payment is absent
D Asset location and the relevant enforcement framework

Answers and explanations: page 93.

The vocabulary that does the work

B Find the words / 1 of 2

Read the definitions and say the common word combinations aloud.

arbitral award

Decision issued by an arbitral tribunal under the relevant process.

IN USE review an arbitral award

award creditor

Party entitled to relief under the award.

IN USE identify the award creditor

award debtor

Party against whom the award grants relief.

IN USE identify the award debtor

recognition

Legal acceptance of an award's status or effect under the relevant framework.

IN USE seek recognition

enforcement

Use of legal mechanisms to give effect to an obligation or decision.

IN USE pursue enforcement

execution against assets

Legal measures directed at assets under the applicable enforcement process.

IN USE assess execution against assets

voluntary compliance

Performance without compulsory enforcement measures.

IN USE request voluntary compliance

asset tracing

Investigation to identify relevant assets.

IN USE distinguish asset tracing from recovery

asset location

Jurisdiction or place in which assets are situated.

IN USE verify asset location

grounds for refusal

Recognized bases for declining relief under the applicable framework.

IN USE assess grounds for refusal

public policy exception

Rule allowing specified relief to be refused on relevant public-policy grounds.

IN USE examine the public policy exception

arbitrability

Whether a dispute can be resolved by arbitration under the applicable law.

IN USE assess arbitrability

Precision check

The award establishes the result stated in that decision, not payment received. Recognition, enforcement, execution, and actual recovery are distinct stages and may raise different legal and practical questions.

The vocabulary that does the work

B Find the words / 2 of 2

Read the definitions and say the common word combinations aloud.

set-aside proceeding

Proceeding seeking annulment of an award under the relevant law.

IN USE distinguish a set-aside proceeding

stay of enforcement

Suspension of enforcement under the relevant authority.

IN USE assess a stay of enforcement

sovereign immunity

Protection of a state or relevant entity from specified proceedings or measures under applicable rules.

IN USE assess sovereign immunity

certified award copy

Copy of an award meeting the applicable certification requirements.

IN USE obtain a certified award copy

enforcement forum

Court or jurisdiction in which enforcement relief is sought.

IN USE identify the enforcement forum

recovery estimate

Qualified estimate of what may actually be collected.

IN USE qualify a recovery estimate

clarification request

Question that resolves an unclear meaning or instruction.

IN USE make a targeted clarification request

source attribution

Identification of where information came from.

IN USE preserve source attribution

working assumption

Provisional premise used while information is incomplete.

IN USE challenge a working assumption

scope boundary

Limit of the work or authority being discussed.

IN USE state the scope boundary

action owner

Named person responsible for a specified next step.

IN USE confirm the action owner

check-back

Restatement used to verify that a message was understood.

IN USE complete a check-back

Precision check

The New York Convention is relevant to many foreign or non-domestic awards, but applicability, requirements, defenses, assets, and local procedure must be checked. No universal outcome or deadline is supplied here.

Phrases you can actually use

C Notice the language / 1 of 2

ACKNOWLEDGE THE RESULT

"The favorable award is an important result."

SEPARATE RECOVERY

"We have not yet received payment or collected funds."

NAME THE NEXT QUESTION

"We need to assess the relevant enforcement forum and assets."

AVOID A GUARANTEE

"Recognition and collection should not be presented as automatic."

DISTINGUISH PROCEEDINGS

"A challenge to the award and an enforcement application are not the same proceeding."

QUALIFY THE ESTIMATE

"Any recovery estimate depends on verified legal and asset information."

CHECK DOCUMENTS

"We need the copies and translations required by the actual forum."

REPORT ACCURATELY

"The status is award received, with recovery steps still under review."

Awarded versus recovered

Awarded identifies relief in the decision; recovered identifies an actual collection outcome.

May refuse

May refuse describes a legally available possibility under specified grounds, not a prediction that refusal will occur.

Available assets

Available should not be used for assets that have merely been rumored or not assessed for the actual enforcement process.

Phrases you can actually use

C Notice the language / 2 of 2

CLARIFY THE QUESTION

"Are you asking about the finding or the next step?"

INVITE CORRECTION

"Please correct me if I have misunderstood that detail."

ATTRIBUTE INFORMATION

"That is what the current record says; it has not been independently confirmed."

SEPARATE POSSIBILITY

"That is a possibility, not an agreed outcome."

CHECK SCOPE

"That decision sits outside my authority."

PIN DOWN RESPONSIBILITY

"Who is responsible for that specific next step?"

REPAIR MISUNDERSTANDING

"Let me restate the distinction more clearly."

CLOSE AN EXCHANGE

"We agree on the action, the owner, and the point for review."

Reported versus verified

Reported attributes information to a source; verified indicates it has been checked. Do not use the words interchangeably.

Could versus will

Could introduces a possibility. Will commits to an action or predicts an outcome; check whether that certainty is justified.

By versus at

By gives a latest time; at identifies a scheduled moment. State the time zone when people work across locations.

Choose the precise message

D Check your understanding

Circle one best answer for each item. Use the stated purpose and case facts, not the option that merely sounds most polite.

1. Which update is supported?

A Award received; no payment collected
B Award amount already in the bank
C Enforcement guaranteed everywhere
D Assets verified and seized

2. What does asset tracing establish when successful?

A Information about relevant assets, not necessarily recovery
B Automatic transfer of funds
C Elimination of every defense
D A universal enforcement forum

3. Which legal questions should not be collapsed?

A Payment and payment received
B Client and client representative
C Set-aside and enforcement proceedings
D Award and arbitral award

4. Which phrase preserves the uncertainty appropriately?

A Every named asset can immediately be seized
B Recovery depends on verified legal and asset information
C Recovery is guaranteed by the award alone
D No local review is needed

Answers and explanations: page 93.

An award is not money in the account

E Conversations / turns 1-10

Complete the numbered gaps. Use each bank entry once, without changing its form. Cover the answers at the end until you finish.

WORD + PHRASE BANK

Execution against assets / award creditor / enforcement forum / asset tracing / grounds for refusal / Recognition / set-aside proceeding / voluntary compliance / arbitral award / recovery estimate

01 **Marta:** We have a favorable award. Can I report the full amount as recovered cash in the management update?

02 **David:** The [1] _____ is an important result, but it is not the same as money received. No payment has occurred yet.

03 **Marta:** I do not want to understate the result, but I also should not make the cash position look better than it is.

04 **David:** Exactly. We can report the award and separately discuss [2] _____, any enforcement steps, and the actual amount collected.

05 **Marta:** The debtor has operations abroad. Does that mean we can enforce the award in any country where its name appears?

06 **David:** We need to verify the relevant [3] _____ and legal framework rather than treating every business location as an available recovery route.

07 **Marta:** We also have a list of possible assets, but some entries are old and may belong to other group entities.

08 **David:** Then [4] _____ and ownership verification matter. A group connection does not establish that an asset belongs to this award debtor.

09 **Marta:** I keep hearing recognition and enforcement used together. Should I understand them as identical words?

10 **David:** [5] _____ concerns the award's legal effect under the relevant framework; enforcing and collecting involve further questions and mechanisms.

The conversation, continued

E Conversations / turns 11-20

Continue with the word bank on page 46.

11 **Marta:** Could the other side resist the application even after the tribunal has issued its decision?

12 **David:** The applicable framework may provide [6] _____. We need to assess the actual position, not promise that every court must grant every request.

13 **Marta:** A colleague mentioned a possible challenge where the award was made. Would that be the same proceeding as our recovery application?

14 **David:** A [7] _____ is a different question from enforcement elsewhere, although the actual relationship between proceedings needs legal review.

15 **Marta:** Even with the appropriate court relief, obtaining money from assets could still require additional steps.

16 **David:** Yes. [8] _____ follows the applicable process; identifying an asset does not mean we already have a right to take it.

17 **Marta:** I will not describe a rumored asset as funds available for immediate recovery in the board paper.

18 **David:** That would overstate the [9] _____. Any estimate should identify the assumptions, limits, and current evidence behind it.

19 **Marta:** My update will say favorable award received, no payment yet, and jurisdiction-specific recovery work under review.

20 **David:** That accurately separates the [10] _____ status from the commercial outcome while recognizing the significance of the decision.

ANSWERS / EXPLANATIONS: PAGE 94

1. arbitral award | 2. voluntary compliance | 3. enforcement forum | 4. asset tracing | 5. Recognition | 6. grounds for refusal | 7. set-aside proceeding | 8. Execution against assets | 9. recovery estimate | 10. award creditor

An asset list is not a recovery

F Say it

An investigation identifies a possible asset linked to a group company. Ownership by the award debtor and the legal recovery route remain unverified. No funds have been collected.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

unverified / collected / assessment / possible

Investigator: "We identified a [1] _____ asset."

Counsel: "The debtor's ownership remains [2] _____."

Investigator: "No funds have been [3] _____."

Counsel: "The legal recovery route needs [4] _____."

ANSWERS / EXPLANATIONS: PAGE 94

1. possible | 2. unverified | 3. collected | 4. assessment

Rehearse with a fixed script

1. Read the corrected exchange and distinguish awarded, recognized, enforced, and recovered.

2. Swap roles and give the management update without presenting the award amount as cash received.

3. Complete the four-line follow-up with the supplied choices. Check the explanations, then read the corrected exchange twice, changing roles.

WORKING ALONE

Read both roles, pausing for two seconds when the speaker changes. Repeat with the bank covered, then check any missed expressions.

A signature does not answer every status question

A Read the situation

Distinguish treaty wording, participation status, temporal scope, and interpretation in a concise legal briefing.

Adviser Lina and colleague Marcus review a fictional treaty provision and a status table. The table shows State R signed, while State S is listed as a party for which the treaty is in force. Further details about State R's consent, reservations, and the relevant date have not been verified. Marcus drafts a note saying the same obligations unquestionably apply to both states. They revise the briefing to identify the unresolved legal questions.

PEOPLE / Marcus: Legal colleague | Lina: Treaty adviser

STATUS TABLES ARE EVIDENCE, NOT DECORATION

A legal brief should state the relevant date and basis for participation. Do not erase distinctions among signature, consent to be bound, and entry into force to make a summary shorter.

Briefing checks

Circle one answer in each item. Use the briefing.

1. What is established for State S in the fictional table?

A No relationship to the treaty
B A reservation identical to State R
C Party status with the treaty in force
D Signature only

2. What has not been verified for State R?

A The relevant consent and applicability details
B That a signature is listed
C That a status table exists
D That the briefing concerns a treaty

3. Which briefing claim is too strong?

A The relevant date matters
B Further verification is needed
C The same obligations unquestionably apply to both
D The status entries differ

Answers and explanations: page 95.

The vocabulary that does the work

B Find the words / 1 of 2

Read the definitions and say the common word combinations aloud.

treaty

International agreement governed by international law in the relevant legal context.

IN USE identify the treaty instrument

signature

Formal act whose legal effect depends on the treaty and relevant circumstances.

IN USE verify the effect of signature

ratification

International act establishing consent to be bound where that procedure applies.

IN USE distinguish ratification

accession

Act by which a state establishes consent to be bound through the applicable accession process.

IN USE verify accession

consent to be bound

Legally relevant expression of agreement to treaty obligations under the applicable rules.

IN USE establish consent to be bound

entry into force

Point at which a treaty becomes operative under its terms and relevant conditions.

IN USE verify entry into force

state party

State bound in the relevant treaty relationship for which the instrument is in force.

IN USE confirm state-party status

reservation

Statement seeking to exclude or modify the legal effect of specified treaty provisions for the reserving state.

IN USE assess a reservation

interpretative declaration

Statement explaining a state's understanding of an instrument, whose legal character needs assessment.

IN USE examine an interpretative declaration

depositary

Entity entrusted with specified treaty-administration functions.

IN USE consult depositary information

authentic text

Treaty text having authoritative status under the instrument's arrangements.

IN USE identify the authentic text

ordinary meaning

Meaning of terms considered under the applicable interpretative framework.

IN USE examine ordinary meaning in context

Precision check

Signature, consent to be bound, and entry into force must be assessed under the actual treaty and rules. Do not assert that signature always has no binding effect or that it always establishes every obligation.

The vocabulary that does the work

B Find the words / 2 of 2

Read the definitions and say the common word combinations aloud.

object and purpose

Treaty aims relevant to its interpretation under the applicable framework.

IN USE address object and purpose

contextual interpretation

Reading a provision with its relevant surrounding text and legal context.

IN USE use contextual interpretation

travaux preparatoires

Preparatory work relevant under applicable interpretative rules.

IN USE assess travaux preparatoires

temporal scope

Period or events to which an instrument or obligation applies.

IN USE clarify temporal scope

territorial application

Geographical scope of an instrument's application.

IN USE verify territorial application

subsequent practice

Later conduct potentially relevant to interpretation under applicable rules.

IN USE assess subsequent practice

clarification request

Question that resolves an unclear meaning or instruction.

IN USE make a targeted clarification request

source attribution

Identification of where information came from.

IN USE preserve source attribution

working assumption

Provisional premise used while information is incomplete.

IN USE challenge a working assumption

scope boundary

Limit of the work or authority being discussed.

IN USE state the scope boundary

action owner

Named person responsible for a specified next step.

IN USE confirm the action owner

check-back

Restatement used to verify that a message was understood.

IN USE complete a check-back

Precision check

The example uses a fictional provision and status table. Actual treaty analysis requires the relevant instrument, current depositary information, applicable dates, and jurisdiction-specific legal expertise where needed.

Phrases you can actually use

C Notice the language / 1 of 2

STATE THE SOURCE

"The table lists a signature for R and party status for S."

PRESERVE THE QUESTION

"We have not yet verified the effect of R's signature under this instrument."

CHECK TIMING

"What is the relevant entry-into-force date for this state and issue?"

READ IN CONTEXT

"The isolated sentence needs its context and the applicable interpretative framework."

CHECK AUTHORITATIVE WORDING

"Which language versions are authentic under the treaty?"

IDENTIFY QUALIFICATIONS

"We need to check relevant reservations and declarations."

AVOID UNIVERSALITY

"Different participation entries do not support identical obligations without further analysis."

SUMMARIZE CAREFULLY

"The text is identified; applicability to R remains under review."

Signed versus in force

These describe different status information; the legal effect depends on the actual treaty and circumstances.

Shall versus may

These modal verbs often signal different normative functions, but the provision still needs its full context and applicable interpretation.

As of

As of attaches a status statement to a date and prevents historical information from sounding timeless.

Phrases you can actually use

C Notice the language / 2 of 2

CLARIFY THE QUESTION

"Are you asking about the finding or the next step?"

INVITE CORRECTION

"Please correct me if I have misunderstood that detail."

ATTRIBUTE INFORMATION

"That is what the current record says; it has not been independently confirmed."

SEPARATE POSSIBILITY

"That is a possibility, not an agreed outcome."

CHECK SCOPE

"That decision sits outside my authority."

PIN DOWN RESPONSIBILITY

"Who is responsible for that specific next step?"

REPAIR MISUNDERSTANDING

"Let me restate the distinction more clearly."

CLOSE AN EXCHANGE

"We agree on the action, the owner, and the point for review."

Reported versus verified

Reported attributes information to a source; verified indicates it has been checked. Do not use the words interchangeably.

Could versus will

Could introduces a possibility. Will commits to an action or predicts an outcome; check whether that certainty is justified.

By versus at

By gives a latest time; at identifies a scheduled moment. State the time zone when people work across locations.

Choose the precise message

D Check your understanding

Circle one best answer for each item. Use the stated purpose and case facts, not the option that merely sounds most polite.

1. Which revised briefing best fits the evidence?

A Signature can never have legal effect
B Both states necessarily have identical reservations
C S is listed as a party; R's relevant status needs further verification
D Signature always means all obligations apply

2. Why identify authentic texts?

A Any online translation automatically controls
B A convenient summary replaces the instrument
C English always overrides every other language
D Authoritative language versions matter to interpretation

3. What does as of add to a status statement?

A A new reservation
B Automatic territorial application
C The date to which the statement relates
D A guarantee the status can never change

4. Which interpretative shortcut should be avoided?

A Reviewing depositary information
B Reading one sentence without its context
C Identifying the instrument
D Checking the relevant date

Answers and explanations: page 95.

A signature does not answer every status question

E Conversations / turns 1-10

Complete the numbered gaps. Use each bank entry once, without changing its form. Cover the answers at the end until you finish.

WORD + PHRASE BANK

temporal scope / Entry into force / depositary / authentic text / reservation / Object and purpose / consent to be bound / Ratification / contextual interpretation / signature

01 **Marcus:** The table lists both states, so I drafted that the treaty's obligations unquestionably apply to R and S in the same way.

02 **Lina:** Their entries differ. We need to separate [1] _____ from the other status information before making that statement.

03 **Marcus:** R is listed as having signed, while S is listed as a party for which the treaty is already in force.

04 **Lina:** Then we must verify the relevant [2] _____ and timing for R rather than treating two different table entries as equivalent.

05 **Marcus:** I should not replace that with the opposite claim that signatures never have any legal effect, should I?

06 **Lina:** Correct. The instrument and circumstances matter. [3] _____ may be relevant, but we should not impose one universal procedure on every treaty.

07 **Marcus:** We also need a date for the briefing, not just a statement that the instrument is in force somewhere.

08 **Lina:** Yes. [4] _____ needs to be checked for the relevant state and question at the relevant time.

09 **Marcus:** The file contains a declaration attached to one state's entry. Can I omit it because the main text is clearer?

10 **Lina:** No. We need to assess whether a [5] _____ or another relevant statement affects the analysis, including its actual legal character and effect.

The conversation, continued

E Conversations / turns 11-20

Continue with the word bank on page 55.

11 **Marcus:** Where should I verify the status rather than rely on an undated summary copied into our internal notes?

12 **Lina:** Use the relevant [6] _____ information and other appropriate primary materials, with the date and source clearly recorded.

13 **Marcus:** The provision is available in several languages, but the working English translation in our file is not labeled authoritative.

14 **Lina:** Then identify the [7] _____ arrangements before treating that translation as controlling wording.

15 **Marcus:** I also quoted one sentence without the preceding definition, which may have made the obligation sound broader.

16 **Lina:** That is why [8] _____ matters. We should read the term within the actual instrument and applicable interpretative framework.

17 **Marcus:** Could we state the treaty's purpose without using that purpose to erase limits that appear in the actual wording?

18 **Lina:** Yes. [9] _____ belongs in the analysis, not as a slogan replacing the text or the status questions.

19 **Marcus:** My revised note will distinguish S's listed position from R's unresolved status and identify the date and source for each.

20 **Lina:** Good. Keep [10] _____ explicit too, so a careful status statement does not quietly become an answer about every past or future event.

ANSWERS / EXPLANATIONS: PAGE 96

1. signature | 2. consent to be bound | 3. Ratification | 4. Entry into force | 5. reservation | 6. depositary | 7. authentic text | 8. contextual interpretation | 9. Object and purpose | 10. temporal scope

An undated table was reused

F Say it

A colleague reuses a historical treaty-status table for a current briefing. The relevant current status and date have not been verified. No conclusion about changed status is supplied.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

unverified / historical / date / changed

Colleague: "The table is [1] _____."

Adviser: "Current status remains [2] _____."

Colleague: "We need the relevant source and [3] _____."

Adviser: "We cannot assume the status is either unchanged or [4] _____."

ANSWERS / EXPLANATIONS: PAGE 96

1. historical | 2. unverified | 3. date | 4. changed

Rehearse with a fixed script

1. Read the corrected briefing and distinguish signature, consent, party status, and entry into force.

2. Swap roles and report only the two fictional table entries, retaining the unresolved applicability questions.

3. Complete the four-line follow-up with the supplied choices. Check the explanations, then read the corrected exchange twice, changing roles.

WORKING ALONE

Read both roles, pausing for two seconds when the speaker changes. Repeat with the bank covered, then check any missed expressions.

Access is not authority to export

A Read the situation

Explain preservation, review, disclosure, and transfer as separate steps while coordinating conflicting legal requirements.

US litigation counsel requests records held by a European affiliate. IT contact Dana can technically export the files. Coordinating lawyer Samir has not yet completed the review of privilege, personal data, applicable transfer requirements, or the production scope. A preservation instruction is already in place. No legal basis, disclosure permission, or deadline is established by this fictional case; real timing questions require prompt qualified review.

PEOPLE / Dana: IT records contact | Samir: Coordinating lawyer

TECHNICAL CAPABILITY IS ONE FACT, NOT THE LEGAL ANSWER

An IT colleague can help preserve and identify information without being asked to make a cross-border legal decision. Explain the separate review stages in practical language.

Briefing checks

Circle one answer in each item. Use the briefing.

1. What can Dana do technically?

A Export the files
B Decide every privilege issue
C Establish a lawful transfer basis alone
D Guarantee production is complete

2. What instruction is already in place?

A Preservation
B Unrestricted overseas production
C Public disclosure
D Destruction after export

3. Which review remains unfinished?

A Privilege, personal data, transfer requirements, and scope
B Whether the files can technically be exported
C Whether counsel requested records
D Whether an affiliate holds records

Answers and explanations: page 97.

The vocabulary that does the work

B Find the words / 1 of 2

Read the definitions and say the common word combinations aloud.

document production

Disclosure of documents under the relevant proceeding or legal process.

IN USE define document production scope

preservation hold

Instruction to retain relevant information under the applicable process.

IN USE maintain a preservation hold

custodian

Person or source responsible for potentially relevant records.

IN USE identify a record custodian

collection scope

Boundaries of information gathered for review.

IN USE define the collection scope

review set

Documents selected for a specified review stage.

IN USE assemble the review set

responsiveness

Relevance of a document to the actual request or production criteria.

IN USE assess responsiveness

legal privilege

Protection for specified communications or material under applicable law.

IN USE assess legal privilege locally

privilege log

Record identifying withheld material as required by the relevant procedure.

IN USE prepare the required privilege log

redaction

Removal or obscuring of specified information in a disclosed copy.

IN USE verify a redaction

personal data

Information concerning an identified or identifiable person under the applicable definition.

IN USE identify personal data

cross-border transfer

Movement or disclosure of information across relevant legal borders.

IN USE assess a cross-border transfer

transfer mechanism

Arrangement relied on under the applicable data-transfer rules.

IN USE verify the transfer mechanism

Precision check

Preserving files, collecting them for review, and producing them abroad are distinct actions. Technical access and a foreign request do not by themselves settle all relevant disclosure and transfer requirements.

The vocabulary that does the work

B Find the words / 2 of 2

Read the definitions and say the common word combinations aloud.

lawful basis

Legal justification required for the relevant processing or action.

IN USE assess the lawful basis

data controller

Entity determining purposes and means of processing under the applicable data-protection framework.

IN USE identify the data controller

blocking statute

Law restricting specified information disclosure or cooperation in the relevant context.

IN USE assess a blocking statute

protective order

Order limiting use or disclosure of material under the relevant court process.

IN USE examine a protective order

chain of custody

Traceable handling history of evidence or records.

IN USE preserve the chain of custody

production protocol

Agreed or directed specifications for document production.

IN USE confirm the production protocol

clarification request

Question that resolves an unclear meaning or instruction.

IN USE make a targeted clarification request

source attribution

Identification of where information came from.

IN USE preserve source attribution

working assumption

Provisional premise used while information is incomplete.

IN USE challenge a working assumption

scope boundary

Limit of the work or authority being discussed.

IN USE state the scope boundary

action owner

Named person responsible for a specified next step.

IN USE confirm the action owner

check-back

Restatement used to verify that a message was understood.

IN USE complete a check-back

Precision check

Neither this exercise nor a generic privacy label resolves the actual conflict of obligations. Qualified counsel must address current law, court directions, preservation, and real timing promptly; do not destroy records or improvise a transfer.

Phrases you can actually use

C Notice the language / 1 of 2

SEPARATE CAPABILITY

"The export is technically possible; legal authorization is a separate question."

PRESERVE FIRST PRINCIPLES

"The preservation instruction remains in place while review proceeds."

DEFINE THE REQUEST

"Which custodians, dates, and document categories are actually requested?"

IDENTIFY THE STAGES

"Collection for review is not the same as external production."

CLARIFY PRIVILEGE

"We need the applicable privilege analysis, not a label added to every file."

CHECK TRANSFER

"The cross-border disclosure requirements need the appropriate review."

ESCALATE COMPETING DUTIES

"Counsel must reconcile the actual obligations and timing."

REPORT READINESS ACCURATELY

"The files are accessible, but production is not yet authorized."

Can versus may

Can can describe technical ability; may can describe permission. State which meaning is intended.

Preserve versus produce

Preserving retains information; producing discloses it through a legal process. One instruction does not imply the other.

All relevant

Relevant requires a defined request and review criteria, not an unbounded export of everything accessible.

Phrases you can actually use

C Notice the language / 2 of 2

CLARIFY THE QUESTION

"Are you asking about the finding or the next step?"

INVITE CORRECTION

"Please correct me if I have misunderstood that detail."

ATTRIBUTE INFORMATION

"That is what the current record says; it has not been independently confirmed."

SEPARATE POSSIBILITY

"That is a possibility, not an agreed outcome."

CHECK SCOPE

"That decision sits outside my authority."

PIN DOWN RESPONSIBILITY

"Who is responsible for that specific next step?"

REPAIR MISUNDERSTANDING

"Let me restate the distinction more clearly."

CLOSE AN EXCHANGE

"We agree on the action, the owner, and the point for review."

Reported versus verified

Reported attributes information to a source; verified indicates it has been checked. Do not use the words interchangeably.

Could versus will

Could introduces a possibility. Will commits to an action or predicts an outcome; check whether that certainty is justified.

By versus at

By gives a latest time; at identifies a scheduled moment. State the time zone when people work across locations.

Choose the precise message

D Check your understanding

Circle one best answer for each item. Use the stated purpose and case facts, not the option that merely sounds most polite.

1. Which statement accurately separates the stages?

A A foreign request resolves every data rule
B Privilege labels eliminate the need for review
C Preservation remains active; disclosure review is incomplete
D Export capability proves lawful production

2. What should Dana not decide from technical access?

A Whether an export function exists
B Which system stores the records
C Whether every file may be disclosed abroad
D Whether a file can be located

3. Which action would conflict with the stated instruction?

A Maintaining the preservation hold
B Deleting preserved records to reduce the review set
C Identifying custodians
D Clarifying the request

4. Which summary is most useful for counsel?

A The IT team has decided all legal issues
B Files accessible; scope, privilege, and transfer questions unresolved
C Everything is ready because export works
D No records exist because review is unfinished

Answers and explanations: page 97.

Access is not authority to export

E Conversations / turns 1-10

Complete the numbered gaps. Use each bank entry once, without changing its form. Cover the answers at the end until you finish.

WORD + PHRASE BANK

personal data / document production / Responsiveness / Legal privilege / production protocol / custodian / redaction / chain of custody / preservation hold / transfer mechanism

01 **Dana:** The US team requested the affiliate's records, and I can export the folders this afternoon. Does that mean we are ready?

02 **Samir:** Technically accessible is not the same as authorized [1] _____. We still need to resolve scope, privilege, personal-data, and transfer questions.

03 **Dana:** The preservation instruction is already active. I will not delete anything just because it might be outside the eventual production.

04 **Samir:** Correct. The [2] _____ remains in place while the appropriate review determines what is collected and disclosed.

05 **Dana:** Which information will help you define the request without asking me to decide the legal relevance of every file?

06 **Samir:** Start with the actual [3] _____ and system information, dates, and document categories requested. We will clarify the review criteria with counsel.

07 **Dana:** I can identify the folders and access permissions. That does not mean every file in them responds to the request.

08 **Samir:** Exactly. [4] _____ needs review against the defined request, rather than assuming that everything in one folder belongs in the production.

09 **Dana:** Some files are labeled confidential or privileged. Should I exclude all of them automatically based on the label?

10 **Samir:** No. [5] _____ requires the applicable analysis. A label is a fact to review, not a complete legal determination.

The conversation, continued

E Conversations / turns 11-20

Continue with the word bank on page 64.

11 **Dana:** We also have personnel information in some attachments, and the receiving team is outside the country where the records are held.

12 **Samir:** Then [6] _____ and cross-border requirements need to be assessed alongside the actual litigation obligations and directions.

13 **Dana:** Does the request from overseas counsel automatically provide the transfer permission, or is that another issue for the review?

14 **Samir:** It is another issue. The appropriate [7] _____ and other relevant requirements cannot simply be inferred from the existence of the request.

15 **Dana:** If a reviewed copy needs information removed, I should keep the original preserved and follow the actual production instructions.

16 **Samir:** Yes. A [8] _____ must follow the verified instructions and be checked, not improvised by anyone trying to shorten the file.

17 **Dana:** I will also record how the files were handled so that the review team can trace the material it receives.

18 **Samir:** That preserves the [9] _____. Traceability matters alongside the legal scope and the safeguards for the actual information exchange.

19 **Dana:** My update will say the files are accessible, preservation continues, and external production is not yet authorized.

20 **Samir:** Good. We will clarify the [10] _____ and address real timing promptly with responsible counsel, without asking IT to resolve competing legal duties alone.

ANSWERS / EXPLANATIONS: PAGE 98

1. document production | 2. preservation hold | 3. custodian | 4. Responsiveness | 5. Legal privilege | 6. personal data | 7. transfer mechanism | 8. redaction | 9. chain of custody | 10. production protocol

The export file is ready, but review is not

F Say it

IT has prepared a review copy under the preservation process. Privilege and transfer review remain incomplete. No external production has been authorized.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

ready / place / authorized / incomplete

IT: "The review copy is technically [1] _____."

Counsel: "The legal review remains [2] _____."

IT: "External production is not [3] _____."

Counsel: "The preservation instruction stays in [4] _____."

ANSWERS / EXPLANATIONS: PAGE 98

1. ready | 2. incomplete | 3. authorized | 4. place

Rehearse with a fixed script

1. Read the corrected exchange and distinguish technical access, preservation, review, and production.

2. Swap roles and give the readiness update without authorizing an export or resolving a legal conflict yourself.

3. Complete the four-line follow-up with the supplied choices. Check the explanations, then read the corrected exchange twice, changing roles.

WORKING ALONE

Read both roles, pausing for two seconds when the speaker changes. Repeat with the bank covered, then check any missed expressions.

A commercial proposal is not a signed settlement

A Read the situation

Separate negotiating positions, authority, drafting status, and legal effect in a cross-border settlement update.

Company representative Nadiya and counsel Felix discuss a proposed settlement of a cross-border commercial dispute. The business teams have discussed a payment figure, but release scope, governing documents, approval authority, and execution remain unresolved. No final legal-effect opinion or binding settlement is established. An email uses without prejudice and subject to contract; counsel explains that their effect must be assessed in the actual jurisdiction and context.

PEOPLE / Nadiya: Company representative | Felix: Counsel

AGREEMENT ON ONE POINT IS NOT AGREEMENT ON EVERY POINT

Recognize commercial progress while stating the unresolved terms. Do not assume that familiar English negotiation labels have identical effects across legal systems.

Briefing checks

Circle one answer in each item. Use the briefing.

1. Which point has been discussed commercially?

A Complete approval authority
B A payment figure
C Every release provision
D Final execution

2. Which issue remains unresolved?

A Whether a figure was discussed
B Release scope and execution
C Whether a dispute exists
D Whether emails were exchanged

3. What must be checked about the email labels?

A Whether the subject line alone guarantees confidentiality
B Their actual jurisdictional and contextual effect
C Whether English labels work identically everywhere
D Whether labels remove all need for advice

Answers and explanations: page 99.

The vocabulary that does the work

B Find the words / 1 of 2

Read the definitions and say the common word combinations aloud.

settlement proposal

Offer or suggested terms for resolving a dispute.

IN USE clarify a settlement proposal

agreement in principle

Preliminary understanding whose legal effect depends on its actual terms and context.

IN USE qualify an agreement in principle

subject to contract

Negotiation label whose effect depends on the applicable law and circumstances.

IN USE assess subject-to-contract wording

without prejudice

Label associated with settlement communications whose protection depends on applicable rules and context.

IN USE assess without-prejudice protection

settlement authority

Power to approve or enter the relevant settlement.

IN USE verify settlement authority

release

Provision giving up specified claims or rights under its terms.

IN USE define the release scope

waiver

Relinquishment of a right or requirement under the applicable circumstances.

IN USE distinguish a waiver

reservation of rights

Statement seeking to preserve specified rights.

IN USE preserve a reservation of rights

no-admission clause

Wording stating that settlement does not constitute a specified admission.

IN USE review a no-admission clause

confidentiality clause

Provision governing specified information disclosure.

IN USE negotiate a confidentiality clause

non-disparagement clause

Provision restricting specified negative statements under its actual terms.

IN USE review a non-disparagement clause

payment condition

Condition governing when or how a payment is due under the agreement.

IN USE clarify a payment condition

Precision check

A discussed payment figure does not establish that every term, approval, and execution step is complete. Do not rely on without prejudice, subject to contract, or agreement in principle as universal legal-effect switches.

The vocabulary that does the work

B Find the words / 2 of 2

Read the definitions and say the common word combinations aloud.

execution

Formal signing or completion of a document in the relevant context.

IN USE confirm execution status

counterpart

Separately signed copy forming part of an agreement under the relevant arrangements.

IN USE check counterpart execution

conditions precedent

Specified conditions required before an obligation or transaction proceeds under its terms.

IN USE identify conditions precedent

entire agreement clause

Provision addressing the relationship between the written agreement and prior communications.

IN USE review an entire agreement clause

term sheet

Summary of proposed or agreed principal terms with context-dependent legal effect.

IN USE qualify the term sheet's status

settlement implementation

Carrying out the actual obligations in the settlement.

IN USE plan settlement implementation

clarification request

Question that resolves an unclear meaning or instruction.

IN USE make a targeted clarification request

source attribution

Identification of where information came from.

IN USE preserve source attribution

working assumption

Provisional premise used while information is incomplete.

IN USE challenge a working assumption

scope boundary

Limit of the work or authority being discussed.

IN USE state the scope boundary

action owner

Named person responsible for a specified next step.

IN USE confirm the action owner

check-back

Restatement used to verify that a message was understood.

IN USE complete a check-back

Precision check

The actual wording and conduct may have legal consequences requiring qualified advice. This exercise does not determine whether negotiations are binding, protected, or enforceable in a real jurisdiction.

Phrases you can actually use

C Notice the language / 1 of 2

RECOGNIZE PROGRESS

"There is commercial progress on the figure, with other terms still open."

SEPARATE AUTHORITY

"Who can approve the settlement for the actual entity?"

DEFINE RELEASE

"Which claims, parties, and periods would the release cover?"

QUALIFY THE LABEL

"That phrase needs assessment under the applicable law and context."

TRACK DRAFTING

"This is the current proposal, not a confirmed executed document."

AVOID ADMISSION

"Let us distinguish the proposed payment from any admission of liability."

PRESERVE CONDITIONS

"The payment trigger and outstanding approvals must remain visible."

REPORT ACCURATELY

"We have a negotiating position, with legal effect and final terms still under review."

Discussed versus agreed

Discussed reports negotiation; agreed should identify the precise point and actual status supported by the record.

In principle

In principle signals a preliminary character in ordinary speech, but legal effect still needs the actual contextual analysis.

Executed versus performed

Executed can refer to signing a document; performed refers to carrying out obligations. Clarify which meaning is intended.

Phrases you can actually use

C Notice the language / 2 of 2

CLARIFY THE QUESTION

"Are you asking about the finding or the next step?"

INVITE CORRECTION

"Please correct me if I have misunderstood that detail."

ATTRIBUTE INFORMATION

"That is what the current record says; it has not been independently confirmed."

SEPARATE POSSIBILITY

"That is a possibility, not an agreed outcome."

CHECK SCOPE

"That decision sits outside my authority."

PIN DOWN RESPONSIBILITY

"Who is responsible for that specific next step?"

REPAIR MISUNDERSTANDING

"Let me restate the distinction more clearly."

CLOSE AN EXCHANGE

"We agree on the action, the owner, and the point for review."

Reported versus verified

Reported attributes information to a source; verified indicates it has been checked. Do not use the words interchangeably.

Could versus will

Could introduces a possibility. Will commits to an action or predicts an outcome; check whether that certainty is justified.

By versus at

By gives a latest time; at identifies a scheduled moment. State the time zone when people work across locations.

Choose the precise message

D Check your understanding

Circle one best answer for each item. Use the stated purpose and case facts, not the option that merely sounds most polite.

1. Which status report best fits the facts?

A Every affiliate released every claim
B Payment has been received
C A figure was discussed; release, authority, and execution remain open
D The entire dispute is conclusively settled

2. Which question clarifies release scope?

A Which claims and parties would this wording cover?
B Which font looks final?
C Who suggested the round number?
D Can we omit every definition?

3. Which assumption about without prejudice should be avoided?

A Context can matter
B The actual communication must be examined
C The label guarantees identical protection in every jurisdiction
D Its effect needs legal review

4. Which distinction matters after signing?

A Execution of the document and performance of its obligations
B Signature and handwriting
C Payment and a payment figure
D Counsel and a lawyer

Answers and explanations: page 99.

A commercial proposal is not a signed settlement

E Conversations / turns 1-10

Complete the numbered gaps. Use each bank entry once, without changing its form. Cover the answers at the end until you finish.

WORD + PHRASE BANK

Subject to contract / settlement proposal / settlement authority / no-admission clause / payment condition / Without prejudice / settlement implementation / Agreement in principle / execution / release

01 **Nadiya:** The business teams discussed a payment figure, and I would like to tell the board that the dispute is settled.

02 **Felix:** We can report progress, but the [1] _____ still leaves the release, approvals, documents, and execution unresolved.

03 **Nadiya:** They called it an agreement in principle. I thought that phrase supplied a clear legal answer about the whole negotiation.

04 **Felix:** [2] _____ needs its actual terms and context examined. It should not become a shortcut around the unresolved legal questions.

05 **Nadiya:** The parent approved the discussion, but I do not know who can bind the subsidiary involved in the claim.

06 **Felix:** Then verify [3] _____ for the actual entity. Group-level support and power to bind the relevant company may be different.

07 **Nadiya:** The proposed release says all claims, but nobody has clarified which parties or periods that phrase is intended to cover.

08 **Felix:** The [4] _____ needs a defined scope. A broad phrase can conceal a major disagreement rather than resolve it.

09 **Nadiya:** One email says without prejudice. Can I assume that makes every statement protected in every country involved?

10 **Felix:** No. [5] _____ needs assessment under the applicable law and context. The label is not a universal protection switch.

The conversation, continued

E Conversations / turns 11-20

Continue with the word bank on page 73.

11 **Nadiya:** Another draft says subject to contract. We should check its actual effect rather than rely on familiar wording alone.

12 **Felix:** Exactly. [6] _____ is part of the material counsel reviews, not a substitute for that review.

13 **Nadiya:** We also want the proposal to avoid suggesting that payment is an admission of the allegations.

14 **Felix:** Then the intended [7] _____ needs careful drafting and review alongside the rest of the agreement, rather than being assumed from the figure.

15 **Nadiya:** Even if signatures are arranged, we still need to know when payment becomes due and what approvals come first.

16 **Felix:** Yes. The [8] _____ and any relevant prerequisites must be explicit in the actual document.

17 **Nadiya:** I have been using executed to mean both signed and completely carried out, which could confuse the status report.

18 **Felix:** Clarify [9] _____ as the signing stage here, and report performance separately when the actual obligations are carried out.

19 **Nadiya:** My revised update will identify the commercial discussion and the open terms, without declaring the legal result settled.

20 **Felix:** That gives the board an accurate picture and leaves [10] _____ to be planned against the verified final position, not an optimistic summary.

ANSWERS / EXPLANATIONS: PAGE 100

1. settlement proposal | 2. Agreement in principle | 3. settlement authority | 4. release | 5. Without prejudice | 6. Subject to contract | 7. no-admission clause | 8. payment condition | 9. execution | 10. settlement implementation

Signed does not mean paid

F Say it

A settlement document has been signed. The payment date under its actual terms is in the future, and no payment has been received. Counsel does not assess any other legal issue in this update.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

received / signed / stages / future

Counsel: "The document has been [1] _____."

Client: "The payment date is still in the [2] _____."

Counsel: "No payment has been [3] _____."

Client: "Signing and performance are separate [4] _____."

ANSWERS / EXPLANATIONS: PAGE 100

1. signed | 2. future | 3. received | 4. stages

Rehearse with a fixed script

1. Read the corrected negotiation update and distinguish a discussed figure, authority, execution, and performance.

2. Swap roles and give the board update while preserving the unresolved terms and jurisdictional qualifications.

3. Complete the four-line follow-up with the supplied choices. Check the explanations, then read the corrected exchange twice, changing roles.

WORKING ALONE

Read both roles, pausing for two seconds when the speaker changes. Repeat with the bank covered, then check any missed expressions.

Explaining the jurisdiction question in an interstate dispute

E More workplace conversations / 1-10

Separate an allegation on the merits from the basis for an international court to hear a contentious case.

State adviser Amel briefs colleague Rowan about a fictional dispute between two states. Rowan assumes that describing an international-law allegation automatically establishes the International Court of Justice's jurisdiction. No particular consent instrument, declaration, reservation, or jurisdictional determination is supplied. They identify the questions that require legal review before reporting a jurisdictional conclusion.

PEOPLE / Rowan: Legal colleague | Amel: State legal adviser

Use each bank entry once, without changing its form. Answers follow turn 20.

WORD + PHRASE BANK

Jurisdictional scope / reservation to consent / Consent-based jurisdiction / merits / jurisdictional basis / procedural posture

01 **Rowan:** The allegation concerns international law, so I assumed the Court can hear the dispute without a separate jurisdictional question.

02 **Amel:** We need to separate the substance of the allegation from the legal basis for the Court to hear this contentious case.

03 **Rowan:** Both parties are states, but that fact alone does not identify the relevant consent basis, does it?

04 **Amel:** Correct. [1] _____ needs its actual basis examined rather than being inferred from the subject matter alone.

05 **Rowan:** I can gather any agreement, treaty provision, or declaration the team proposes to rely on.

06 **Amel:** Please also identify its scope and qualifications. A reference to an instrument is not a conclusion that it covers every dispute.

07 **Rowan:** Then a question about the court's authority should remain separate from whether the alleged conduct breached an obligation.

08 **Amel:** Yes. The [2] _____ and jurisdiction address different questions, even when some facts matter to both parts of the analysis.

09 **Rowan:** The briefing currently says the respondent must lose because our jurisdiction paragraph sounds strong.

10 **Amel:** That conflates two conclusions. We have not established either the jurisdictional position or the merits from the limited information here.

The conversation, continued

E More workplace conversations / 11-20

Continue with the word bank on page 76.

11 **Rowan:** Would a consent instrument's subject-matter limits need to stay visible in the summary?

12 **Amel:** Certainly. [3] _____ cannot be broadened simply because the full qualification is inconvenient in a short briefing.

13 **Rowan:** We should also check any relevant dates or reservations rather than assume the same position throughout history.

14 **Amel:** Exactly. A [4] _____ or another relevant qualification may affect the actual analysis and must be reviewed in context.

15 **Rowan:** I will distinguish the materials we have found from a legal conclusion that the Court has already accepted the case.

16 **Amel:** Good. A proposed [5] _____ is not the same as a judicial determination that it is sufficient.

17 **Rowan:** The note can identify the open questions and the legal work needed before anyone announces a jurisdictional result.

18 **Amel:** That is more useful than an overconfident headline that later advisers must unwind.

19 **Rowan:** My revised summary will say the allegation and possible consent materials are being reviewed, with no determination reported.

20 **Amel:** Then the [6] _____ remains accurate, and the reader can distinguish our analysis from an outcome that has not occurred.

ANSWERS / EXPLANATIONS: PAGE 101

1. Consent-based jurisdiction | 2. merits | 3. Jurisdictional scope | 4. reservation to consent | 5. jurisdictional basis | 6. procedural posture

A possible basis became a court determination

F Say it in a new situation

A briefing identifies a possible treaty-based jurisdictional argument. No court determination is supplied. An executive summary mistakenly says jurisdiction has been confirmed.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

status / determination / argument / supplied

Adviser: "The briefing identifies a possible [1] _____."

Colleague: "No court determination is [2] _____."

Adviser: "The summary overstated the [3] _____."

Colleague: "I will restore the distinction between argument and [4] _____."

ANSWERS / EXPLANATIONS: PAGE 101

1. argument | 2. supplied | 3. status | 4. determination

Read, switch, repeat

1. Check the four answers and read the complete exchange aloud.

2. Switch roles. Read it again with the word bank covered.

3. Return to the extended conversation. Read turns 1-10, then switch roles for turns 11-20. Use the corrected expressions.

SOLO PRACTICE

Read both roles. Pause briefly at each change of speaker. Repeat any line that needed an answer check.

Explaining what an Apostille does and does not certify

E More workplace conversations / 1-10

Distinguish authentication of a public document's origin from a guarantee of its substantive truth or acceptance for every purpose.

Client contact Jo asks legal coordinator Mira whether an Apostille proves every statement in a public document is true and guarantees that the receiving body must accept it for the intended transaction. No particular document, country pair, or receiving-body requirement is supplied. Mira explains the limited authentication function and identifies the actual applicability and use questions for verification.

PEOPLE / Jo: Client contact | Mira: Legal coordinator

Use each bank entry once, without changing its form. Answers follow turn 20.

WORD + PHRASE BANK

Apostille / applicability check / Competent Authority / Authentication / document linkage / receiving-body requirements

01 **Jo:** The document has an Apostille. Can I tell the receiving body that this proves every statement inside it is true?

02 **Mira:** No. We need to distinguish authentication of the document's origin from a guarantee of the substantive information it contains.

03 **Jo:** I thought the certificate was a broad endorsement of the document and the transaction it will be used for.

04 **Mira:** An [1] _____ concerns the relevant signature, capacity, and seal or stamp under the applicable process, not the truth of every underlying statement.

05 **Jo:** Then I should not describe the certificate as an independent legal opinion on the transaction either.

06 **Mira:** Correct. [2] _____ and the legal effect of the underlying document answer different questions.

07 **Jo:** We still need to know whether the Convention applies to the actual document and the relevant countries.

08 **Mira:** Yes. The [3] _____ must use current official information and the actual document circumstances.

09 **Jo:** Who verifies the certificate if the receiving body has a question about it?

10 **Mira:** The relevant [4] _____ and official verification arrangements should be identified. We should not invent a verification result ourselves.

The conversation, continued

E More workplace conversations / 11-20

Continue with the word bank on page 79.

11 **Jo:** The recipient may also have a specific requirement for the document's purpose, date, or translation.

12 **Mira:** Those [5] _____ need to be clarified separately rather than assumed satisfied by the certificate alone.

13 **Jo:** So a certificate can address one formality without deciding whether the document meets every substantive requirement for the application.

14 **Mira:** Exactly. We should explain the completed authentication step and the remaining use questions without calling the whole transaction approved.

15 **Jo:** I will keep the actual document and certificate together when asking for the appropriate review.

16 **Mira:** Good. That preserves the [6] _____ and avoids discussing a certificate detached from the material it concerns.

17 **Jo:** I also should not claim that a general website description has verified our particular country pair or document category.

18 **Mira:** Correct. We need the actual facts and current official information for that conclusion.

19 **Jo:** My summary will say the certificate addresses origin-related authentication, while the intended use still needs its relevant checks.

20 **Mira:** That is precise. It avoids turning a limited certificate into a guarantee of substantive truth, legal validity, or universal acceptance.

ANSWERS / EXPLANATIONS: PAGE 102

1. Apostille | 2. Authentication | 3. applicability check | 4. Competent Authority | 5. receiving-body requirements | 6. document linkage

The certificate was treated as proof of the contents

F Say it in a new situation

A summary says an Apostille proves the underlying document's statements are true. The actual question concerns the certificate's limited authentication function, not a verified substantive conclusion.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

authentication / checks / summary / true

Coordinator: "The certificate concerns specified origin-related [1] _____."

Client: "It does not guarantee the contents are [2] _____."

Coordinator: "The intended use needs its own relevant [3] _____."

Client: "I will correct the overbroad [4] _____."

ANSWERS / EXPLANATIONS: PAGE 102

1. authentication | 2. true | 3. checks | 4. summary

Read, switch, repeat

1. Check the four answers and read the complete exchange aloud.

2. Switch roles. Read it again with the word bank covered.

3. Return to the extended conversation. Read turns 1-10, then switch roles for turns 11-20. Use the corrected expressions.

SOLO PRACTICE

Read both roles. Pause briefly at each change of speaker. Repeat any line that needed an answer check.

Reconciling a bilingual contract discrepancy

E More workplace conversations / 1-10

Explain a material translation difference without silently choosing a controlling version or amending the parties' agreement.

Translator Eli and counsel Sana compare two versions of a fictional contract. One says a party may provide a report; the other describes reporting as mandatory. The governing-language provision and parties' intended obligation have not been verified. They preserve both texts and route the discrepancy for legal and client review rather than silently rewriting either version.

PEOPLE / Eli: Legal translator | Sana: Counsel

Use each bank entry once, without changing its form. Answers follow turn 20.

WORD + PHRASE BANK

modal discrepancy / reconciliation record / tracked revision / translation query / version status / governing-language provision

01 **Eli:** I found a difference that changes the obligation: one version says may provide, while the other makes the report mandatory.

02 **Sana:** That is not just a stylistic preference. Please identify the exact clauses and keep both source versions intact.

03 **Eli:** I can explain the language difference, but I cannot decide by myself which obligation the parties intended to accept.

04 **Sana:** Correct. The [1] _____ needs legal and client review before either version is silently corrected.

05 **Eli:** The file also contains a working translation, and I do not know whether it was ever approved for signing.

06 **Sana:** Then preserve the [2] _____ of each document so we do not compare an unsigned draft as though it were the executed agreement.

07 **Eli:** Would a governing-language clause answer which text controls if there is a conflict?

08 **Sana:** We need to verify the actual [3] _____ and its effect. We cannot assume one exists or that English necessarily prevails.

09 **Eli:** I will quote the two short passages and describe the difference as discretion versus a mandatory duty.

10 **Sana:** That is a useful [4] _____, provided it does not present your proposed wording as a legal amendment already agreed by the parties.

The conversation, continued

E More workplace conversations / 11-20

Continue with the word bank on page 82.

11 **Eli:** I can suggest alternative wording after the intended meaning is clarified, with the change tracked for review.

12 **Sana:** Yes. We need the appropriate authority and review process, not a quiet replacement that loses the original discrepancy.

13 **Eli:** The business team wants the documents aligned today, but speed does not establish the missing instruction.

14 **Sana:** A [5] _____ helps reviewers see what changed; it does not supply the consent or legal conclusion by itself.

15 **Eli:** We should also check whether the same modal difference appears in related definitions or reporting provisions.

16 **Sana:** That is a sensible consistency question, but keep the search scope and findings separate from a claim that every issue is resolved.

17 **Eli:** My note will identify the clauses, versions, linguistic difference, and the unanswered question for counsel and the client.

18 **Sana:** Then the [6] _____ can preserve the original problem and the authorized resolution when it is actually reached.

19 **Eli:** Until then, neither version should be rewritten merely because one sounds more natural to me in English.

20 **Sana:** Exactly. Linguistic fluency supports the review; it does not replace the legal and contractual authority needed to settle the meaning.

ANSWERS / EXPLANATIONS: PAGE 103

1. modal discrepancy | 2. version status | 3. governing-language provision | 4. translation query | 5. tracked revision | 6. reconciliation record

May became must

F Say it in a new situation

A translation changes may submit to must submit. No instruction authorizing a stronger obligation is supplied. Counsel requests a query rather than an unapproved amendment.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

must / query / authorized / may

Translator: "The original uses [1] _____."

Counsel: "The translation strengthened it to [2] _____."

Translator: "The discrepancy needs a translation [3] _____."

Counsel: "No stronger obligation has been [4] _____."

ANSWERS / EXPLANATIONS: PAGE 103

1. may | 2. must | 3. query | 4. authorized

Read, switch, repeat

1. Check the four answers and read the complete exchange aloud.

2. Switch roles. Read it again with the word bank covered.

3. Return to the extended conversation. Read turns 1-10, then switch roles for turns 11-20. Use the corrected expressions.

SOLO PRACTICE

Read both roles. Pause briefly at each change of speaker. Repeat any line that needed an answer check.

01 Briefing and language checks

Defining the client and the cross-border mandate

A Briefing checks / page 4

1. Which entity is named in the contract?

D. Orion Components Ltd
The contract names Orion Components Ltd, while the email comes from the parent.

2. Which point remains unresolved?

A. The client entity and engagement authority
The brief explicitly leaves client identity and authorization for the engagement unconfirmed.

3. What would overstate the present status?

C. Our firm has accepted representation
No accepted representation or conflict clearance is established in the case.

D Language checks / page 9

1. Which intake question resolves the key distinction?

D. Which entity is asking us to act, and which signed?
The question separates client identity from the contracting party without assuming representation or liability.

2. Which summary is supported?

C. The subsidiary signed; the proposed client remains unconfirmed
The supplied contract and unresolved engagement facts support only the qualified summary.

3. What should be attributed to local counsel?

C. Advice on the specified local-law question
Local counsel's advice should remain tied to its jurisdiction, facts, and question.

4. Which phrase preserves an unresolved condition?

A. Subject to completion of the required checks
Subject to makes the condition visible rather than presenting the engagement as complete.

01 Conversation answers

Defining the client and the cross-border mandate

E Dialogue gaps 1-5

Pages 10-11

1. legal entity. Turn 2. A legal entity has a distinct identity, so a group name cannot automatically identify the contracting party or proposed client.

2. contracting party. Turn 4. The contracting party named in the supplied agreement is the subsidiary, which must not be silently replaced with the parent company.

3. client identity. Turn 6. Client identity identifies whom counsel would represent and is not settled merely by a contact using a corporate group name.

4. authority to instruct. Turn 8. Authority to instruct concerns who can give instructions for the actual client and must be verified rather than inferred from document coordination.

5. scope of engagement. Turn 10. Scope of engagement defines the work and jurisdictional questions accepted, rather than assuming unlimited advice across every country mentioned.

F Transfer answers 1-2

Page 12

1. affiliate

Contact: "A different affiliate has joined the discussion."

The new sender is another connected entity, not automatically the same client.

2. confirmed

Lawyer: "Its representation is not yet confirmed."

Being copied on an email does not establish an accepted engagement.

E Dialogue gaps 6-10

Pages 10-11

6. coordinating counsel. Turn 12. Coordinating counsel organizes the matter across advisers while preserving the source and limits of each jurisdiction-specific opinion.

7. conflicts check. Turn 14. A conflicts check is part of the relevant representation process and cannot be assumed complete because documents have been sent.

8. engagement letter. Turn 16. The engagement letter records the agreed professional engagement and should identify the client and scope once the required process is completed.

9. Private international law. Turn 18. Private international law addresses cross-border private-law questions, so a contract dispute is not automatically a dispute between states.

10. instruction record. Turn 20. An instruction record preserves who supplied the information and instructions, helping prevent assumptions about authority or representation from becoming facts.

F Transfer answers 3-4

Page 12

3. instruct

Contact: "We need to identify its authority to instruct."

The relevant person's power to instruct for that entity needs clarification.

4. outstanding

Lawyer: "The required checks remain outstanding."

The scenario supplies no completed checks for the newly involved affiliate.

02 Briefing and language checks

Separating governing law from the dispute forum

A Briefing checks / page 13

1. Which substantive law does the fictional wording select?

B. Law of Jurisdiction A
The contract expressly identifies Jurisdiction A in its substantive-law wording.

2. Which courts does the separate clause name?

A. Courts in Jurisdiction B
The dispute clause separately names courts in Jurisdiction B.

3. What remains unassessed?

D. Effectiveness and scope of the clauses
The brief leaves effectiveness, exclusivity, and mandatory-rule issues for legal review.

D Language checks / page 18

1. Which summary accurately separates the clauses?

B. A is named for substantive law; B is named for courts
The summary states the supplied wording without deciding its legal effectiveness.

2. Which question remains open?

C. Whether the forum clause is effective and exclusive
Effectiveness and exclusivity require review beyond identifying the named jurisdictions.

3. What does a local-law qualification do?

D. Limits the conclusion to the actual analysis and conditions
A qualification preserves the assumptions and limits of the opinion rather than creating universal certainty.

4. Which phrase most clearly avoids an overstatement?

C. The clause names these courts; its effect needs review
Naming the courts reports the text while leaving the unresolved legal effect explicit.

02 Conversation answers

Separating governing law from the dispute forum

E Dialogue gaps 1-5

Pages 19-20

1. choice-of-law clause. Turn 2. The choice-of-law clause selects law for specified questions, which is distinct from the contract's separate selection of courts.

2. substantive law. Turn 4. Substantive law concerns rights and obligations, and the supplied contract wording identifies A for that question.

3. procedural law. Turn 6. Procedural law concerns how proceedings are conducted and must not be treated as identical to the substantive-law choice.

4. forum-selection clause. Turn 8. The forum-selection clause identifies the dispute forum, but its wording and applicable law must be examined before assuming exclusivity.

5. mandatory rule. Turn 10. A mandatory rule may apply despite party agreement under the relevant legal framework, so its effect requires jurisdiction-specific review.

F Transfer answers 1-2

Page 21

1. forum

Counsel: "The clause names a forum."

The wording identifies a forum, which is the only stated textual fact.

2. exclusive

Manager: "My summary added the word exclusive."

Exclusive was introduced in the summary without the required assessment.

E Dialogue gaps 6-10

Pages 19-20

6. Jurisdiction. Turn 12. Jurisdiction concerns the court's legal authority over the relevant matter or parties and is not conclusively established merely by a manager's reading of a clause.

7. Venue. Turn 14. Venue concerns the place of proceedings under the relevant framework and should not be used as a synonym for governing substantive law.

8. enforceability opinion. Turn 16. An enforceability opinion assesses legal effect under the relevant conditions and is different from simply identifying what the contract says.

9. local-law qualification. Turn 18. A local-law qualification preserves the conditions or limits of the jurisdiction-specific advice and should not be deleted during summarization.

10. contract interpretation. Turn 20. Contract interpretation determines meaning in context under the relevant law, so a careful summary must distinguish the text from unresolved legal conclusions.

F Transfer answers 3-4

Page 21

3. review

Counsel: "That conclusion remains under review."

The legal effect and exclusivity have not yet been determined.

4. characterization

Manager: "I will correct the unsupported characterization."

The added characterization must be removed or accurately qualified rather than repeated as settled.

03 Briefing and language checks

Coordinating service abroad and deadline questions

A Briefing checks / page 22

1. What does the supplied receipt confirm?

A. A courier delivery event
The receipt concerns physical delivery, while the relevant legal effect has not been assessed.

2. Which summary currently overstates the facts?

C. The defendant has been served
Served implies a legal conclusion that the delivery receipt alone does not establish.

3. What must be verified before giving a deadline answer?

D. The applicable rules and actual triggering facts
Legal deadlines depend on the actual governing process and verified facts, not a universal guessed interval.

D Language checks / page 27

1. Which update preserves the receipt's evidential scope?

A. Courier delivery confirmed; service validity under review
The receipt confirms delivery only, so the wider procedural conclusions remain unresolved.

2. What should the coordinator not calculate by guesswork?

D. The legal response deadline
A response deadline depends on applicable law and triggering facts, not an assumed standard period.

3. Which source is appropriate for country-specific requirements?

A. Current official information and qualified local procedural advice
The actual route needs current official and qualified jurisdiction-specific verification.

4. Which action addresses real timing risk?

B. Escalate promptly to responsible counsel while facts are checked
Uncertainty requires prompt qualified attention rather than a guessed deadline or permission to delay.

03 Conversation answers

Coordinating service abroad and deadline questions

E Dialogue gaps 1-5

Pages 28-29

1. courier receipt. Turn 2. A courier receipt records a physical delivery event and does not alone establish valid service under the applicable legal requirements.

2. authorized recipient. Turn 4. An authorized recipient must have the relevant legal capacity to receive the documents; a signature on delivery does not by itself establish that capacity.

3. transmission channel. Turn 6. A transmission channel is the route applicable under the relevant legal process and cannot be selected solely from ordinary courier logistics.

4. Central Authority. Turn 8. A Central Authority is designated under the relevant convention, and the correct authority and its role must be checked for the actual matter.

5. translation requirement. Turn 10. A translation requirement depends on the actual procedure and jurisdiction and must not be assumed satisfied because documents were physically delivered.

E Dialogue gaps 6-10

Pages 28-29

6. response deadline. Turn 12. A response deadline depends on the applicable rules and verified triggering facts, not the period used in an unrelated matter.

7. triggering event. Turn 14. A triggering event starts a legal period under the actual rule, and it cannot be assumed from an unreviewed delivery timestamp.

8. certificate of service. Turn 16. A certificate of service records relevant service facts under its actual process, which must be reviewed rather than equated automatically with a courier receipt.

9. procedural calendar. Turn 18. The procedural calendar should distinguish verified obligations from unresolved timing questions and identify the responsible counsel for urgent verification.

10. local procedural advice. Turn 20. Local procedural advice addresses the jurisdiction-specific requirements and needs accurate facts rather than assumptions already presented as legal conclusions.

F Transfer answers 1-2

Page 30

1. dispatched

Coordinator: "The request has been dispatched."

Dispatch describes the sender's completed action, not confirmed receipt or completed service.

2. unconfirmed

Counsel: "Authority receipt remains unconfirmed."

The brief explicitly leaves receipt by the relevant authority unconfirmed.

F Transfer answers 3-4

Page 30

3. available

Coordinator: "No service certificate is available."

The case supplies no certificate establishing service-related facts for review.

4. status

Counsel: "We must preserve the actual procedural status."

The update should distinguish dispatch, receipt, and service rather than collapse them.

04 Briefing and language checks

Explaining an arbitral seat and hearing arrangements

A Briefing checks / page 31

1. Which seat does the fictional clause identify?

C. City A
The clause expressly identifies City A as the legal seat.

2. What is being considered for the hearing?

D. Remote participation with some people in City B
Only hearing logistics are under discussion; no seat change is agreed.

3. Which issue remains unresolved?

B. The language of proceedings
The case explicitly says that the language has not yet been agreed.

D Language checks / page 36

1. Which summary matches the case?

C. Seat A; remote logistics involving B under discussion
The case states the seat in A and separately discusses remote hearing arrangements.

2. Which question needs confirmation?

A. The language and hearing protocol
The unresolved procedural arrangements include language and the actual hearing protocol.

3. Which statement preserves the request's status?

A. We propose this arrangement for the appropriate decision
A proposal must not be presented as a tribunal direction or agreed change.

4. What should be checked before relying on an institutional procedure?

A. The applicable rule version and actual directions
Procedure depends on the actual applicable framework, not branding or unrelated logistics.

04 Conversation answers

Explaining an arbitral seat and hearing arrangements

E Dialogue gaps 1-5

Pages 37-38

1. arbitral seat. Turn 2. The arbitral seat is the legal place identified by the agreement and relevant framework, not automatically the location of remote participants.

2. hearing venue. Turn 4. The hearing venue concerns where the hearing is conducted or arranged and must be distinguished from the arbitration's legal seat.

3. remote hearing. Turn 6. A remote hearing uses communication technology for participation and does not eliminate the need for applicable procedure or a clearly identified legal seat.

4. institutional rules. Turn 8. Institutional rules must be identified in the version applicable to the matter rather than selected from whichever copy is easiest to find.

5. language of proceedings. Turn 10. The language of proceedings is an actual procedural matter requiring agreement or determination under the relevant framework, not an assumption based on participants' locations.

F Transfer answers 1-2

Page 39

1. proposed

Counsel: "The date was only proposed."

The draft email offered a date but did not establish a final arrangement.

2. confirmed

Coordinator: "Our calendar incorrectly marked it confirmed."

Confirmed overstates the status because no fixing agreement or direction is supplied.

E Dialogue gaps 6-10

Pages 37-38

6. procedural order. Turn 12. A procedural order is a direction under the tribunal's authority and should not be confused with a party's scheduling suggestion.

7. hearing protocol. Turn 14. The hearing protocol sets the actual arrangements for conducting the hearing, including participation and document handling as appropriately agreed or directed.

8. arbitral tribunal. Turn 16. The arbitral tribunal exercises the authority available under the relevant agreement, rules, and law, which is distinct from technical coordination of a call.

9. procedural timetable. Turn 18. The procedural timetable records actual procedural dates and should distinguish binding or fixed steps from proposed scheduling options.

10. arbitration agreement. Turn 20. The arbitration agreement provides the relevant agreed framework, whose stated terms must not be altered merely by a shortened logistical summary.

F Transfer answers 3-4

Page 39

3. pending

Counsel: "The actual procedural decision remains pending."

The scenario leaves the relevant agreement or direction unresolved.

4. status

Coordinator: "I will correct the timetable status."

The correction must preserve the distinction between a proposal and a fixed date.

05 Briefing and language checks

Explaining recognition, enforcement, and recovery

A Briefing checks / page 40

1. What has actually occurred?

A. A favorable arbitral award was received
The case supplies the award but none of the later recovery steps.

2. Which financial report would overstate the facts?

C. Cash recovered equals the award amount
The award amount is not cash received when no payment or collection has occurred.

3. Which issue needs verification?

D. Asset location and the relevant enforcement framework
No asset location or jurisdiction-specific enforcement position has been established.

D Language checks / page 45

1. Which update is supported?

A. Award received; no payment collected
This update separates the supplied decision from recovery stages that have not occurred.

2. What does asset tracing establish when successful?

A. Information about relevant assets, not necessarily recovery
Identifying assets is distinct from obtaining and executing the legal measures needed for recovery.

3. Which legal questions should not be collapsed?

C. Set-aside and enforcement proceedings
Challenges to the award and requests to enforce it can involve different proceedings and authorities.

4. Which phrase preserves the uncertainty appropriately?

B. Recovery depends on verified legal and asset information
This statement identifies the relevant unresolved conditions rather than promising collection.

05 Conversation answers

Explaining recognition, enforcement, and recovery

E Dialogue gaps 1-5

Pages 46-47

1. arbitral award. Turn 2. An arbitral award states the tribunal's decision, but receiving it does not mean that payment or collection has occurred.

2. voluntary compliance. Turn 4. Voluntary compliance means performing the obligation without compulsory enforcement, and no such payment is established in this case.

3. enforcement forum. Turn 6. The enforcement forum is the court or jurisdiction where relief is sought, which requires analysis rather than assumption from a company's international presence.

4. asset tracing. Turn 8. Asset tracing investigates relevant assets and ownership; a preliminary list is not proof that the award debtor owns recoverable assets.

5. Recognition. Turn 10. Recognition concerns legal acceptance of the award's status or effect under the applicable framework and is distinct from actual collection.

F Transfer answers 1-2

Page 48

1. possible

Investigator: "We identified a possible asset."

The asset is a lead, not a verified recovery source.

2. unverified

Counsel: "The debtor's ownership remains unverified."

The group connection does not establish ownership by the relevant award debtor.

E Dialogue gaps 6-10

Pages 46-47

6. grounds for refusal. Turn 12. Grounds for refusal are specified bases under the relevant framework and need actual legal assessment rather than an assumption that recognition is automatic.

7. set-aside proceeding. Turn 14. A set-aside proceeding seeks annulment under the relevant law and is not simply another name for an application to enforce the award elsewhere.

8. Execution against assets. Turn 16. Execution against assets uses the applicable legal measures to give effect to the decision and is distinct from merely identifying an asset or receiving an award.

9. recovery estimate. Turn 18. A recovery estimate must reflect verified legal and asset information and cannot equate the award amount with guaranteed cash collection.

10. award creditor. Turn 20. The award creditor is the party entitled to relief under the award, a status that does not itself prove money has been collected.

F Transfer answers 3-4

Page 48

3. collected

Investigator: "No funds have been collected."

The investigation has not produced an actual receipt of money.

4. assessment

Counsel: "The legal recovery route needs assessment."

The applicable enforcement process must be assessed before a recovery conclusion is made.

06 Briefing and language checks

Reading treaty text without overstating applicability

A Briefing checks / page 49

1. What is established for State S in the fictional table?

C. Party status with the treaty in force
The table explicitly identifies S as a party for which the treaty is in force.

2. What has not been verified for State R?

A. The relevant consent and applicability details
R's additional consent, reservations, and timing details remain unverified in the case.

3. Which briefing claim is too strong?

C. The same obligations unquestionably apply to both
The supplied differing status entries do not support identical unquestionable obligations.

D Language checks / page 54

1. Which revised briefing best fits the evidence?

C. S is listed as a party; R's relevant status needs further verification
This statement reports the table while leaving the unresolved effect of R's status open.

2. Why identify authentic texts?

D. Authoritative language versions matter to interpretation
The actual authentic versions must be identified instead of assuming a translation's authority.

3. What does as of add to a status statement?

C. The date to which the statement relates
As of makes the time reference explicit rather than presenting status as timeless.

4. Which interpretative shortcut should be avoided?

B. Reading one sentence without its context
Context and the applicable interpretative framework are needed beyond an isolated sentence.

06 Conversation answers

Reading treaty text without overstating applicability

E Dialogue gaps 1-5

Pages 55-56

1. signature. Turn 2. Signature has the legal effect provided by the actual treaty and circumstances and cannot automatically be equated with identical full obligations for every listed state.

2. consent to be bound. Turn 4. Consent to be bound is the legally relevant agreement to treaty obligations under the applicable procedure, which has not been fully established for R here.

3. Ratification. Turn 6. Ratification is one relevant international act expressing consent where applicable, but the actual treaty determines which procedures matter.

4. Entry into force. Turn 8. Entry into force must be checked for the relevant treaty relationship and date rather than inferred from a general statement that the treaty exists.

5. reservation. Turn 10. A reservation seeks to exclude or modify specified legal effects and must be assessed rather than omitted from an applicability analysis.

E Dialogue gaps 6-10

Pages 55-56

6. depositary. Turn 12. The depositary performs specified treaty-administration functions, making its relevant status information an important source to verify.

7. authentic text. Turn 14. An authentic text has authoritative status under the treaty's arrangements and must be distinguished from a convenient working translation.

8. contextual interpretation. Turn 16. Contextual interpretation reads the provision with relevant surrounding text and the applicable legal framework rather than isolating a convenient sentence.

9. Object and purpose. Turn 18. Object and purpose are relevant to treaty interpretation under the applicable framework but do not justify ignoring the actual text and context.

10. temporal scope. Turn 20. Temporal scope identifies the period or events to which the obligation applies and prevents an undated status statement from answering a time-specific question.

F Transfer answers 1-2

Page 57

1. historical

Colleague: "The table is historical."

The source describes an earlier status rather than a verified current position.

2. unverified

Adviser: "Current status remains unverified."

The case supplies no check establishing the current relevant treaty status.

F Transfer answers 3-4

Page 57

3. date

Colleague: "We need the relevant source and date."

A traceable status statement must identify its source and time reference.

4. changed

Adviser: "We cannot assume the status is either unchanged or changed."

Without verification, neither continuity nor a change can be asserted as established.

07 Briefing and language checks

Coordinating cross-border document production

A Briefing checks / page 58

1. What can Dana do technically?

A. Export the files
Dana's technical access does not supply the unresolved legal permissions.

2. What instruction is already in place?

A. Preservation
The case identifies preservation as the established instruction, not disclosure or deletion.

3. Which review remains unfinished?

A. Privilege, personal data, transfer requirements, and scope
The stated legal reviews remain incomplete and must not be presumed resolved.

D Language checks / page 63

1. Which statement accurately separates the stages?

C. Preservation remains active; disclosure review is incomplete
This statement preserves the existing instruction and the unfinished legal work.

2. What should Dana not decide from technical access?

C. Whether every file may be disclosed abroad
Disclosure permission requires the relevant legal review, not merely system access.

3. Which action would conflict with the stated instruction?

B. Deleting preserved records to reduce the review set
The preservation instruction remains active and must not be undermined by deletion.

4. Which summary is most useful for counsel?

B. Files accessible; scope, privilege, and transfer questions unresolved
This summary identifies both the technical fact and the specific unresolved legal questions.

07 Conversation answers

Coordinating cross-border document production

E Dialogue gaps 1-5

Pages 64-65

1. document production. Turn 2. Document production is disclosure under the relevant legal process, and technical export capability does not establish permission to disclose all files.

2. preservation hold. Turn 4. A preservation hold retains relevant information under the actual process and remains distinct from a later decision about disclosure.

3. custodian. Turn 6. A custodian identifies a person or source associated with potentially relevant records, helping counsel define and review the requested information.

4. Responsiveness. Turn 8. Responsiveness concerns whether a document meets the actual request or production criteria and cannot be inferred from its folder location alone.

5. Legal privilege. Turn 10. Legal privilege depends on the applicable law and actual material, so a file label cannot replace the required jurisdiction-specific assessment.

F Transfer answers 1-2

Page 66

1. ready

IT: "The review copy is technically ready."

The technical preparation is complete, which is narrower than production authorization.

2. incomplete

Counsel: "The legal review remains incomplete."

Privilege and transfer questions have not yet been resolved in the case.

E Dialogue gaps 6-10

Pages 64-65

6. personal data. Turn 12. Personal data in the records raises relevant information-handling questions that must be assessed alongside the actual production obligations.

7. transfer mechanism. Turn 14. A transfer mechanism must be assessed under the applicable rules and is not automatically supplied by a foreign request or technical ability to export.

8. redaction. Turn 16. A redaction removes or obscures specified information in a disclosed copy and should follow the actual reviewed production instructions while originals are preserved appropriately.

9. chain of custody. Turn 18. Chain of custody records handling history so the identity and integrity of evidence can be traced through the actual collection and review process.

10. production protocol. Turn 20. The production protocol specifies the actual agreed or directed production requirements and should not be replaced by a convenient unreviewed export format.

F Transfer answers 3-4

Page 66

3. authorized

IT: "External production is not authorized."

No permission for external production is supplied by the brief.

4. place

Counsel: "The preservation instruction stays in place."

The existing preservation process continues while the remaining review is completed.

08 Briefing and language checks

Negotiating settlement language across legal systems

A Briefing checks / page 67

1. Which point has been discussed commercially?

B. A payment figure
The brief establishes discussion of a figure, not a completed settlement package.

2. Which issue remains unresolved?

B. Release scope and execution
The case explicitly leaves release terms, authority, documents, and execution unresolved.

3. What must be checked about the email labels?

B. Their actual jurisdictional and contextual effect
Their legal effect depends on the relevant law and context rather than the words alone.

D Language checks / page 72

1. Which status report best fits the facts?

C. A figure was discussed; release, authority, and execution remain open
This report preserves commercial progress and the explicitly unresolved legal terms.

2. Which question clarifies release scope?

A. Which claims and parties would this wording cover?
A release needs its actual claims, parties, and other scope limits identified.

3. Which assumption about without prejudice should be avoided?

C. The label guarantees identical protection in every jurisdiction
A familiar label does not create universal protection regardless of applicable law or context.

4. Which distinction matters after signing?

A. Execution of the document and performance of its obligations
Signing and carrying out the settlement obligations are distinct stages that should be reported separately.

08 Conversation answers

Negotiating settlement language across legal systems

E Dialogue gaps 1-5

Pages 73-74

1. settlement proposal. Turn 2. A settlement proposal states suggested terms and should not be treated as a completed binding resolution when key matters remain unresolved.

2. Agreement in principle. Turn 4. Agreement in principle describes a preliminary understanding in ordinary use, while its actual legal effect depends on the terms, conduct, and applicable law.

3. settlement authority. Turn 6. Settlement authority identifies who can approve or enter the agreement for the relevant legal person and is not established by a different entity's informal approval.

4. release. Turn 8. A release gives up specified claims or rights under its terms, so its parties, claims, and other scope limits require careful definition.

5. Without prejudice. Turn 10. Without prejudice is a legal-context label whose protection depends on the relevant rules and circumstances, not a universal guarantee created by typing the words.

F Transfer answers 1-2

Page 75

1. signed

Counsel: "The document has been signed."

Signing is the completed step explicitly established by the brief.

2. future

Client: "The payment date is still in the future."

The actual payment date has not yet arrived in this scenario.

E Dialogue gaps 6-10

Pages 73-74

6. Subject to contract. Turn 12. Subject to contract must be assessed in the actual legal context and cannot by itself answer every question about the parties' words and conduct.

7. no-admission clause. Turn 14. A no-admission clause addresses specified admissions in its actual wording and should be reviewed rather than assumed from the payment proposal alone.

8. payment condition. Turn 16. A payment condition defines the actual trigger or terms for payment and must remain distinct from a figure merely discussed in negotiations.

9. execution. Turn 18. Execution in this document context concerns formal signing or completion, which should not be confused with later performance of the settlement obligations.

10. settlement implementation. Turn 20. Settlement implementation concerns carrying out the actual obligations after their status and terms are established, not assuming performance from a negotiating proposal.

F Transfer answers 3-4

Page 75

3. received

Counsel: "No payment has been received."

The case explicitly distinguishes signing from actual receipt of funds.

4. stages

Client: "Signing and performance are separate stages."

Executing the document and carrying out its obligations are different status events.

09 Conversation answers

Explaining the jurisdiction question in an interstate dispute

E Extended conversation

Pages 76-77

1. Consent-based jurisdiction. Turn 4. Consent-based jurisdiction requires the relevant basis of state consent to be identified; an allegation concerning international law does not itself supply that basis.

2. merits. Turn 8. The merits concern the substantive dispute, which is distinct from the preliminary question of the Court's authority to hear the case.

3. Jurisdictional scope. Turn 12. Jurisdictional scope identifies which disputes or issues the asserted consent basis covers and must not be broadened by a shortened summary.

4. reservation to consent. Turn 14. A reservation to consent can qualify the asserted jurisdictional basis and requires analysis of its actual wording and applicable effect.

5. jurisdictional basis. Turn 16. A jurisdictional basis is the legal foundation asserted for the Court's authority and must be distinguished from a determination accepting that foundation.

6. procedural posture. Turn 20. Procedural posture describes the actual stage and status of a matter, preventing a proposed legal position from being reported as an established court outcome.

F Transfer exchange

Page 78

1. argument

Adviser: "The briefing identifies a possible argument."

The briefing presents a possible legal position rather than an established outcome.

2. supplied

Colleague: "No court determination is supplied."

The case contains no judicial decision confirming the asserted jurisdictional basis.

3. status

Adviser: "The summary overstated the status."

It changed an argument under review into a purported confirmed result.

4. determination

Colleague: "I will restore the distinction between argument and determination."

A party's legal argument and a court's decision are different procedural facts.

Background reading: ICJ. Basis of the Court's jurisdiction.. The conversation is an original fictional teaching case.

10 Conversation answers

Explaining what an Apostille does and does not certify

E Extended conversation

Pages 79-80

1. Apostille. Turn 4. An Apostille authenticates specified origin-related features of a public document under the applicable Convention process, not the substantive truth of every statement.

2. Authentication. Turn 6. Authentication addresses specified origin-related features and must not be confused with an opinion on the underlying transaction's legal effect.

3. applicability check. Turn 8. An applicability check examines the actual document and country relationship rather than assuming every public document and destination uses the same process.

4. Competent Authority. Turn 10. The Competent Authority is the designated body with the relevant Apostille function, and its identity should be verified through official information.

5. receiving-body requirements. Turn 12. Receiving-body requirements concern the actual intended use and may raise questions distinct from authenticating the origin of the public document.

6. document linkage. Turn 16. Document linkage keeps the certificate associated with the relevant public document so the reviewer can identify what the authentication concerns.

F Transfer exchange

Page 81

1. authentication

Coordinator: "The certificate concerns specified origin-related authentication."

The authentication function concerns the relevant signature, capacity, and seal or stamp.

2. true

Client: "It does not guarantee the contents are true."

Authentication does not independently establish the substantive truth of every statement.

3. checks

Coordinator: "The intended use needs its own relevant checks."

The receiving purpose may raise requirements separate from the authentication formality.

4. summary

Client: "I will correct the overbroad summary."

The summary must describe the certificate's actual scope without adding a universal guarantee.

Background reading: HCCH. The ABCs of Apostilles.. The conversation is an original fictional teaching case.

11 Conversation answers

Reconciling a bilingual contract discrepancy

E Extended conversation

Pages 82-83

1. modal discrepancy. Turn 4. A modal discrepancy changes the force of wording such as permission and obligation, so it can be legally material rather than merely stylistic.

2. version status. Turn 6. Version status identifies whether a document is a draft, working translation, approved text, or signed version and must remain visible during reconciliation.

3. governing-language provision. Turn 8. A governing-language provision may address which language version prevails, but its actual wording and legal effect must be reviewed rather than assumed.

4. translation query. Turn 10. A translation query identifies a specific language issue for clarification without deciding the legal effect or amending the agreement on the translator's own authority.

5. tracked revision. Turn 14. A tracked revision makes a proposed wording change visible for review and does not itself prove that the parties authorized or accepted the change.

6. reconciliation record. Turn 18. A reconciliation record preserves the discrepancy, review, and authorized resolution rather than hiding a material difference through untracked editing.

F Transfer exchange

Page 84

1. may

Translator: "The original uses may."

May expresses permission or discretion in the wording supplied for this comparison.

2. must

Counsel: "The translation strengthened it to must."

Must introduces a mandatory force not authorized by the supplied instruction.

3. query

Translator: "The discrepancy needs a translation query."

The issue should be raised for clarification rather than silently decided.

4. authorized

Counsel: "No stronger obligation has been authorized."

The case supplies no approval to replace the original wording with a stronger duty.

Find the move you need

Use these as precise language models. Replace details only when you know the actual facts, authority, and agreed conditions.

01 Defining the client and the cross-border mandate

Identify the party: Which legal entity signed this agreement?

Limit the mandate: We need to define which jurisdictions and questions the engagement covers.

Summarize intake: The signatory is identified; client identity and authority remain to be confirmed.

Full phrase set: pages 7-8 | Dialogue: pages 10-11

02 Separating governing law from the dispute forum

Separate the clauses: This provision selects law; that provision identifies a forum.

Clarify scope: Which disputes and parties does the clause actually cover?

Summarize plainly: Where a dispute is heard and which substantive law applies are distinct questions.

Full phrase set: pages 16-17 | Dialogue: pages 19-20

03 Coordinating service abroad and deadline questions

Report the event: The courier confirms delivery to the office.

Verify the recipient: We need to confirm who received them and in what capacity.

Correct the status: I will replace served with the narrower delivery status until the legal review is complete.

Full phrase set: pages 25-26 | Dialogue: pages 28-29

04 Explaining an arbitral seat and hearing arrangements

Identify the legal choice: The clause names City A as the seat.

Verify the rules: Which version of the applicable rules governs this matter?

Summarize status: The seat is stated; hearing logistics and language remain under discussion.

Full phrase set: pages 34-35 | Dialogue: pages 37-38

Keep the conversation productive

Use these as precise language models. Replace details only when you know the actual facts, authority, and agreed conditions.

05 Explaining recognition, enforcement, and recovery

Acknowledge the result: The favorable award is an important result.

Avoid a guarantee: Recognition and collection should not be presented as automatic.

Report accurately: The status is award received, with recovery steps still under review.

Full phrase set: pages 43-44 | Dialogue: pages 46-47

06 Reading treaty text without overstating applicability

State the source: The table lists a signature for R and party status for S.

Read in context: The isolated sentence needs its context and the applicable interpretative framework.

Summarize carefully: The text is identified; applicability to R remains under review.

Full phrase set: pages 52-53 | Dialogue: pages 55-56

07 Coordinating cross-border document production

Separate capability: The export is technically possible; legal authorization is a separate question.

Identify the stages: Collection for review is not the same as external production.

Report readiness accurately: The files are accessible, but production is not yet authorized.

Full phrase set: pages 61-62 | Dialogue: pages 64-65

08 Negotiating settlement language across legal systems

Recognize progress: There is commercial progress on the figure, with other terms still open.

Qualify the label: That phrase needs assessment under the applicable law and context.

Report accurately: We have a negotiating position, with legal effect and final terms still under review.

Full phrase set: pages 70-71 | Dialogue: pages 73-74

Find a term and its context

The page number leads to the definition and a typical word combination. Repeated terms have separate entries when they serve different lesson contexts.

accession verify accession 50
action owner confirm the action owner 6
action owner confirm the action owner 15
action owner confirm the action owner 24
action owner confirm the action owner 33
action owner confirm the action owner 42
action owner confirm the action owner 51
action owner confirm the action owner 60
action owner confirm the action owner 69
ad hoc arbitration distinguish ad hoc arbitration 32
affiliate clarify the affiliate relationship 5
agreement in principle qualify an agreement in principle 68
arbitrability assess arbitrability 41
arbitral award review an arbitral award 41
arbitral institution identify the arbitral institution 32
arbitral seat identify the arbitral seat 32
arbitral tribunal address the arbitral tribunal 32
arbitration agreement examine the arbitration agreement 32
arbitrator appointment confirm an arbitrator appointment 33
asset location verify asset location 41
asset tracing distinguish asset tracing from recovery 41
authentic text identify the authentic text 50
authority to instruct verify authority to instruct 5
authorized recipient verify the authorized recipient 23

Find a term and its context

The page number leads to the definition and a typical word combination. Repeated terms have separate entries when they serve different lesson contexts.

award creditor identify the award creditor 41

award debtor identify the award debtor 41

blocking statute assess a blocking statute 60

Central Authority verify the designated Central Authority 23

certificate of service review a certificate of service 23

certified award copy obtain a certified award copy 42

certified translation obtain the required certified translation 23

chain of custody preserve the chain of custody 60

challenge to an arbitrator distinguish an arbitrator challenge 33

check-back complete a check-back 6

check-back complete a check-back 15

check-back complete a check-back 24

check-back complete a check-back 33

check-back complete a check-back 42

check-back complete a check-back 51

check-back complete a check-back 60

check-back complete a check-back 69

choice of court clarify choice of court 15

choice-of-law clause review a choice-of-law clause 14

clarification request make a targeted clarification request 6

clarification request make a targeted clarification request 15

clarification request make a targeted clarification request 24

clarification request make a targeted clarification request 33

clarification request make a targeted clarification request 42

Find a term and its context

The page number leads to the definition and a typical word combination. Repeated terms have separate entries when they serve different lesson contexts.

clarification request make a targeted clarification request 51
clarification request make a targeted clarification request 60
clarification request make a targeted clarification request 69
client identity confirm client identity 5
collection scope define the collection scope 59
conditions precedent identify conditions precedent 69
confidentiality clause negotiate a confidentiality clause 68
conflict-of-laws analysis undertake conflict-of-laws analysis 14
conflicts check complete a conflicts check 5
consent to be bound establish consent to be bound 50
contextual interpretation use contextual interpretation 51
contract interpretation explain contract interpretation 15
contracting party identify the contracting party 5
Convention Contracting Party check Convention Contracting Party status 23
coordinating counsel identify coordinating counsel 6
corporate capacity verify corporate capacity 6
counterpart check counterpart execution 69
country profile consult the current country profile 23
courier receipt distinguish a courier receipt 23
cross-border transfer assess a cross-border transfer 59
custodian identify a record custodian 59
data controller identify the data controller 60
declaration or objection check current declarations or objections 23
defective service assess alleged defective service 24

Find a term and its context

The page number leads to the definition and a typical word combination. Repeated terms have separate entries when they serve different lesson contexts.

depositary consult depositary information 50

dispute-resolution clause review the dispute-resolution clause 15

document production define document production scope 59

enforceability opinion qualify an enforceability opinion 15

enforcement pursue enforcement 41

enforcement forum identify the enforcement forum 42

engagement letter settle the engagement letter 5

entire agreement clause review an entire agreement clause 69

entry into force verify entry into force 50

exclusive jurisdiction clause assess an exclusive jurisdiction clause 14

execution confirm execution status 69

execution against assets assess execution against assets 41

forum non conveniens assess forum non conveniens locally 14

forum-selection clause interpret a forum-selection clause 14

governing law identify the governing law 14

grounds for refusal assess grounds for refusal 41

hearing protocol confirm the hearing protocol 32

hearing venue distinguish the hearing venue 32

institutional rules verify the institutional rules 32

instruction record maintain an instruction record 6

interim measure discuss an interim measure 33

interpretative declaration examine an interpretative declaration 50

jurisdiction assess jurisdiction 14

jurisdictional nexus identify a jurisdictional nexus 6

Find a term and its context

The page number leads to the definition and a typical word combination. Repeated terms have separate entries when they serve different lesson contexts.

jurisdictional objection preserve a jurisdictional objection 33
language of proceedings confirm the language of proceedings 32
lawful basis assess the lawful basis 60
legal entity identify the legal entity 5
legal privilege assess legal privilege locally 59
local counsel instruct local counsel 5
local procedural advice obtain local procedural advice 24
local-law qualification preserve a local-law qualification 15
mandatory rule identify a mandatory rule 14
no-admission clause review a no-admission clause 68
non-disparagement clause review a non-disparagement clause 68
non-exclusive jurisdiction clause interpret a non-exclusive jurisdiction clause 14
object and purpose address object and purpose 51
ordinary meaning examine ordinary meaning in context 50
parent company distinguish the parent company 5
payment condition clarify a payment condition 68
personal data identify personal data 59
preservation hold maintain a preservation hold 59
private international law distinguish private international law 6
privilege log prepare the required privilege log 59
procedural calendar maintain the procedural calendar 24
procedural law distinguish procedural law 14
procedural order review a procedural order 32
procedural timetable maintain the procedural timetable 33

Find a term and its context

The page number leads to the definition and a typical word combination. Repeated terms have separate entries when they serve different lesson contexts.

production protocol confirm the production protocol 60
proof of transmission retain proof of transmission 24
protective order examine a protective order 60
public international law distinguish public international law 6
public policy exception examine the public policy exception 41
ratification distinguish ratification 50
recognition seek recognition 41
recovery estimate qualify a recovery estimate 42
redaction verify a redaction 59
release define the release scope 68
remote hearing organize a remote hearing 32
reservation assess a reservation 50
reservation of rights preserve a reservation of rights 68
response deadline verify the response deadline 24
responsiveness assess responsiveness 59
review set assemble the review set 59
scope boundary state the scope boundary 6
scope boundary state the scope boundary 15
scope boundary state the scope boundary 24
scope boundary state the scope boundary 33
scope boundary state the scope boundary 42
scope boundary state the scope boundary 51
scope boundary state the scope boundary 60
scope boundary state the scope boundary 69

Find a term and its context

The page number leads to the definition and a typical word combination. Repeated terms have separate entries when they serve different lesson contexts.

scope of engagement define the scope of engagement 5
service of process verify service of process 23
service request prepare a service request 23
set-aside proceeding distinguish a set-aside proceeding 42
settlement authority verify settlement authority 68
settlement implementation plan settlement implementation 69
settlement proposal clarify a settlement proposal 68
severability consider severability under the actual law 15
signatory verify the signatory 5
signature verify the effect of signature 50
source attribution preserve source attribution 6
source attribution preserve source attribution 15
source attribution preserve source attribution 24
source attribution preserve source attribution 33
source attribution preserve source attribution 42
source attribution preserve source attribution 51
source attribution preserve source attribution 60
source attribution preserve source attribution 69
sovereign immunity assess sovereign immunity 42
state party confirm state-party status 50
stay of enforcement assess a stay of enforcement 42
subject to contract assess subject-to-contract wording 68
subsequent practice assess subsequent practice 51
subsidiary identify the contracting subsidiary 5

Find a term and its context

The page number leads to the definition and a typical word combination. Repeated terms have separate entries when they serve different lesson contexts.

substantive law distinguish substantive law 14
temporal scope clarify temporal scope 51
term sheet qualify the term sheet's status 69
terms of reference clarify the terms of reference 32
territorial application verify territorial application 51
transfer mechanism verify the transfer mechanism 59
translation requirement confirm a translation requirement 23
transmission channel identify a transmission channel 23
travaux preparatoires assess travaux preparatoires 51
treaty identify the treaty instrument 50
tribunal constitution track tribunal constitution 33
triggering event establish the triggering event 24
venue distinguish venue 14
voluntary compliance request voluntary compliance 41
waiver distinguish a waiver 68
without prejudice assess without-prejudice protection 68
working assumption challenge a working assumption 6
working assumption challenge a working assumption 15
working assumption challenge a working assumption 24
working assumption challenge a working assumption 33
working assumption challenge a working assumption 42
working assumption challenge a working assumption 51
working assumption challenge a working assumption 60
working assumption challenge a working assumption 69

Original cases. Clear boundaries.

These are original fictional teaching conversations, not transcripts of real workers. Names, figures, organizations, and incidents are invented. Sources support terminology and communication aims, not the fictional results or an endorsement of this book.

[1] HCCH. Service Section.

Open the original source

Background on the Service Convention, channels of transmission, status information, and country-specific practical requirements. Checked 11 October 2026.

[2] ICC. 2021 Arbitration Rules.

Open the original source

Terminology for arbitration agreements, place, procedure, and language. Actual matters require the applicable version of the rules and law. Checked 11 October 2026.

[3] UNCITRAL. New York Convention.

Open the original source

Background for distinguishing an arbitral award from court recognition and enforcement under the relevant framework. Checked 11 October 2026.

[4] United Nations. Vienna Convention on the Law of Treaties.

Open the original source

Primary terminology for treaty participation, entry into force, reservations, and interpretation. Fictional provisions are not quotations from the Convention. Checked 11 October 2026.

Phil Stilwell

© 2026 Phil Stilwell. All rights reserved.

No part of this publication may be reproduced, stored in a retrieval system, or transmitted in any form or by any means without prior written permission from the author, except as permitted by law.

All people, organizations, cases, figures, and documents in the exercises are fictional. This is professional English practice, not legal advice, a filing guide, or authority to practice law. Legal meanings, deadlines, privilege, service, privacy, sanctions, and enforceability depend on the actual jurisdiction, instrument, facts, and current law. Use qualified counsel and verified current primary materials for real matters. No exercise establishes a filing deadline, service method, court jurisdiction, treaty obligation, or binding settlement. Protect real client information.

English Ladder | English for Work | 2026 edition. The B2-C1 range is an editorial study recommendation, not a proficiency certification.

Open the matching English Ladder course